

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 17-05

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CMI DISTRIBUTION, INC.,

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN  
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

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**CMI DISTRIBUTION’S OPPOSITION TO SERVICE BY AIR AND  
RADIANT CUSTOMS SERVICES INC.’S MOTION TO DISMISS**

CMI Distribution, Inc. (“CMI”) hereby opposes the Motion to Dismiss filed by Service By Air, Inc. (“Service by Air”) and Radiant Customs Services Inc. (“Radiant”) (collectively the “Movants”). The Movants’ Motion is predicated upon the fact that although CMI’s Complaint alleges that SBA and Radiant held themselves out as NVOCCs, CMI failed to attach bills of lading or provide other evidence that the Movants acted as NVOCCs for the shipments at issue. The Motion fails for a host of reasons including the fact that at the pleading stage a complaint is not required to include evidence proving its claim. While the Movants’ argument regarding lack of evidence might have some merit were the case at the Summary Judgment stage -- after the completion of discovery -- failure to provide evidence supporting allegations in a complaint is not a valid basis for granting a motion to dismiss pursuant to Federal Rule 12(b)(6).

To the extent that the Movants seek to overcome this hurdle by alleging that it is seeking to dismiss pursuant to Federal Rule 12(b)(1) on the grounds that the Commission lacks subject

matter jurisdiction over the Complaint, its argument also fails. If the jurisdictional challenge to the Commission's jurisdiction is a facial one, the same standard applies as set forth above, and the same result obtains. If the Movants' jurisdictional challenge is a factual one, where, as here, the jurisdictional issue and substantive issues are intertwined, dismissal on jurisdictional grounds is premature and, instead the Presiding Judge should rule on the merits of the claim after the development of a complete evidentiary record, rather than prematurely addressing the claim on jurisdictional grounds.

To the extent that the Presiding Judge were to consider the documents and affidavit submitted by the Movants at this juncture and thus effectively convert the Motion to Dismiss to a Motion for Summary Judgment without affording CMI the opportunity to obtain discovery in support of its claims, dismissal still would not be warranted because, as reflected in the Declaration of Maria T. Vega ("Vega Dec."), and the Exhibits attached thereto, Service by Air did issue bills of lading for the transportation at issue -- which the Movants concede is the prototypical evidence of a party acting as an NVOCC. The Movants' invoices further clearly reflect that Service by Air billed CMI for ocean transportation services and for demurrage and related costs arising out of that transportation.<sup>1</sup> The affidavit submitted by the Movants stating that Service by Air never participated in ocean transportation is thus knowingly false and does not support the relief sought.

At a minimum, CMI is entitled to obtain discovery to substantiate its claims, particularly when the documentation establishing CMI's claims are primarily in the hands of the Movants, who have consistently refused to provide documentation justifying the over \$400,000 in container demurrage charges coerced from CMI. Absent discovery, all factual disputes must be

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<sup>1</sup> Documentation that CMI has been able to obtain further reflects that the Movant fraudulently billed CMI for air freight -- at rates apparently far in excess of the cost of ocean transportation -- even though the goods at issue moved via steamship line.

resolved in favor of CMI. Here, because there can be no legitimate dispute that Service by Air issued bills of lading for the ocean transportation at issue, and the Movants invoiced CMI for demurrage and related charges arising out of that ocean transportation, the Movants' Motion to Dismiss on the grounds that the Commission does not have subject matter jurisdiction over the claims fails.

In addition to being procedurally defective, the Movants' Motion to Dismiss fails as a matter of law to the extent that it is predicated upon the notion that an entity needs to have issued a bill of lading to have acted as an NVOCC. Well-established Commission precedent holds that a party need not have issued a bill of lading in order to have acted as an NVOCC.

### **CMI's Complaint**

CMI's Complaint alleges, *inter alia*, that CMI engaged Service by Air and Radiant to provide ocean transportation of 60 shipments (the "Shipments") from China to Illinois. Verified Complaint at ¶ 6. CMI was assessed more than \$400,000 in demurrage or storage fees associated with the shipments. *Id.* at ¶ 7.

The Verified Complaint alleges that the Respondents held themselves out as NVOCCs for the Shipments. *Id.* at ¶ 8. It also alleges that Service by Air issued bills of lading for the Shipments in the form of airway bills, despite the fact that the goods moved by ocean, rather than by air. *Id.* at ¶¶ 11-12. It further alleges that in issuing bills of lading for the ocean transportation at issue, Service by Air held itself out as an NVOCC, despite the fact that Service by Air is not licensed as an OTI by the FMC and does not maintain a tariff with the FMC. *Id.* at ¶¶ 13-14.

The Verified Complaint asserts that during the time period at issue, SBA Consolidators was a licensed OTI and had a tariff on file with the FMC. *Id.* at ¶ 16. The SBA Consolidators' tariff on file with the FMC did not contain rules pertaining to demurrage. *Id.*

The Complaint asserts that despite repeated inquiry from CMI, the Respondents have refused to provide details regarding the amounts of demurrage or storage charged to CMI on the shipments at issue. *Id.* at ¶ 21.

The Complaint further alleges that although the Respondents assessed what they represented were demurrage charges against CMI, the assessments were improper in that: 1) the Respondents did not have tariffs that permitted the recovery of such charges; 2) the charges exceeded the demurrage charges that were allowable under the VOCC's tariff; 3) the charges assessed did not accurately reflect time periods, including free time, during which demurrage charges (or detention or per diem charges) could properly have been assessed; and 4) the charges assessed included additional charges beyond the charges assessed by VOCCs, despite the fact that the Respondents either did not have tariffs or, to the extent that they had tariffs, did not have rules allowing them to inflate the charges assessed by the underlying VOCC. *Id.* at ¶ 26.

The Complaint alleges that upon inquiry from CMI, Respondents or their agents repeatedly indicated that the demurrage charges on the Shipments were imposed solely by other entities in the shipping chain, including steamship lines. *Id.* at ¶¶ 28-29. The Complaint alleges that although CMI repeatedly questioned and challenged the level of demurrage charges on the Shipments, it was forced to pay those charges in order to gain release of the Shipments, possession of which was essential to continue its business operations. *Id.* at ¶ 30. Finally, the Complaint asserts that although CMI commissioned an audit of the shipping documentation provided by the Respondents to better understand the exceedingly high demurrage charges, the

Respondents' failure to provide supporting documentation for its charges rendered it impossible to perform a complete analysis of the basis for the charges. *Id.* at ¶ 31.

The Complaint asserts Shipping Act violations based upon, *inter alia*: 1) Service by Air acting as an OTI without having a license issued by the Commission; 2) Service by Air and Radiant having failed to observe just and reasonable practices in violation of § 41102(c) by assessing charges against CMI not in compliance with the rates, charges, classifications, rules, and practices contained in a tariff published with the Commission; 3) Service by Air and Radiant charging CMI for storage and demurrage on the Shipments without providing notice of such charges on shipping documentation, bills of lading or published tariffs; 4) Service by Air and Radiant improperly adding fees to storage and demurrage fees assessed by third parties while indicating to Complainant that the storage and demurrage fees were pass-through charges assessed solely by those third parties; 5) Service by Air and Radiant assessing demurrage charges during free time when no such demurrage charges were owed; and 6) Service by Air and Radiant failing to provide Complainant with: (a) proper and lawful ownership documentation (bills of lading); (b) proper shipping invoices; (c) the terms and conditions of transport even though Complainant paid Respondents; and (d) clean and accurate statements of costs incurred and amounts properly payable for transportation services and related costs.

### **Legal Standards Governing Motions to Dismiss<sup>2</sup>**

Rule 12 of the Commission's Rules of Practice and Procedure state that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission's Rules

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<sup>2</sup> If the Presiding Judge deems it necessary, CMI is prepared to file an Amended Complaint addressing any shortfalls in the original petition. Fed. R. Civ. P. 15(a) provides that leave to amend a complaint should be freely given when justice so requires. *See also Foman v. Davis*, 371 U.S. 178, 182 (1962) (in absence of bad faith or dilatory motive, leave to amend should be "freely given"); *Ricciutti v. N.Y.C. Transit Authority*, 941 F.2d 119 (2d Cir. 1991) (when complaint is dismissed pursuant to Rule 12(b)(6) and the plaintiff requests permission to file an amended complaint, the request should ordinarily be granted).

to the extent that application of the Federal Rules is consistent with sound administrative practice. 46 C.F.R. § 502.12. Because the Commission's Rules do not address motions to dismiss for lack of subject matter jurisdiction or for failure to state a claim, Federal Rule 12(b) applies here. *Mitsui OSK Lines Ltd v. Global Link*, 32 S.R.R. 126, 136 (FMC 2011).

**A. Rule 12(b)(6)**

In deciding a motion to dismiss for failure to state a claim, courts must liberally construe all claims, accept all factual allegations in the complaint as true, and draw all reasonable inferences in favor of the plaintiff. See *Arencibia v. 2401 Restaurant Corp.*, 699 F. Supp. 2d 318, 323 (D.D.C. 2010). The court may not discount factual allegations, but rather must only determine whether the facts as alleged in the complaint are sufficiently plausible to meet the elements of the moving party's claim. *Mayor & City Council of Baltimore, Md. v. Citigroup, Inc.*, 709 F.3d 129, 135 (2d Cir. 2013). This standard does not impose a probability requirement at the pleading stage; it simply calls for enough facts to raise a reasonable expectation that discovery will reveal evidence of wrongful conduct. *Id.* at 135 (citing *Bell Atlantic v. Twombly*, 550 U.S. 544, 556 (2007)). A claim is plausible when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged. *Ashcroft v. Iqbal*, 556 U.S. 662 (2009). Further, "a well-pleaded complaint may proceed even if it strikes a savvy judge that factual proof of the facts is improbable and that recovery is very remote and unlikely." *Twombly*, 550 U.S. at 556. In order to survive a motion to dismiss, the complaint need only contain sufficient factual matter, accepted as true, to state a claim for relief that is plausible on its face. *Simon v. Keyspan Corp.*, 694 F.3d 196, 201 (2d Cir. 2012).

In construing the standards governing a motion to dismiss, the Commission similarly recognizes that it construes complaints in the light most favorable to the plaintiff and accepts all

well-pled facts alleged in the complaint as true. *Mitsui OSK Lines Ltd v. Global Link*, 32 S.R.R. at 136 (FMC 2011). Further, relying upon *Twombly*, 550 U.S. 544 (2007), the Commission in *Global Link* recognized that a claim has “facial plausibility” when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged. *Id.* Ultimately, the test of a complaint’s sufficiency simply is whether the document’s allegations are informative enough to enable the defendant to respond. *Id.*

Pursuant to Federal Rule of Civil Procedure 8, a pleading states a claim if it contains “a short and plain statement of the claim showing that the pleader is entitled to relief.” Fed. R. Civ. P. 8(a) (2). “Rule 8 *does not* require a plaintiff to attach *evidence* to support its claim as this would contravene the theoretical underpinnings of the notice pleading requirement.” *Grooms v. Legge*, No. 09cv489–IEG–POR, 2009 WL 20131730 at \* 3 (S.D. Cal. 2009) (emphasis in original); *see also In re Philip Service Corp. Securities Litigation*, 383 F. Supp. 2d 463, 478 (S.D.N.Y. 2004) (even under heightened pleading requirements applicable to a securities fraud case, no requirement to submit documentation supporting claims).

In considering a motion to dismiss under Fed. R. Civ. P. 12(b)(6), courts are limited to considering the sufficiency of allegations set forth in the complaint and the documents attached or incorporated into the complaint. *Zak v. Chelsea Therapeutics Int’l Ltd.*, 780 F.3d 597, 606 (4th Cir. 2015). “Consideration of extrinsic documents by a court during the pleading stage of litigation improperly converts a motion to dismiss into a motion for summary judgment. This conversion is not appropriate when the parties have not had an opportunity to conduct reasonable discovery.” *Id.* (citations omitted).

Courts therefore should focus their inquiry on the sufficiency of the facts relied upon by the plaintiffs in the complaint. *Id.* Consideration of a document attached to a motion to dismiss

ordinarily is permitted only when the document is “integral to and explicitly relied on in the complaint” and when “the plaintiffs do not challenge the document’s authenticity.” *Id.* at 606-607. Finally, when documents or other facts are considered under the narrow exception to that standard, the court must construe the facts in the light most favorable to the plaintiff. *Id.*

**B. Rule 12(b)(1)**

A party mounting a Rule 12(b)(1) challenge to a court’s jurisdiction may do so either on the face of the pleadings or by presenting extrinsic evidence for the court’s consideration. *Cholakyan. V. Mercedes-Benz USA, LLC*, No. CV 10-05944 MMM (JCx), 2012 WL 12861143 at \*16 (C.D. Cal. 2012). The same standards governing a Rule 12(b)(1) facial challenge apply as those governing a Rule 12(b)(6) motion, *i.e.*, the court must accept the allegations of the complaint as true. *Id.*

The Supreme Court has recognized that a court should not grant a jurisdictional challenge to a complaint on factual grounds where the jurisdiction and substantive issues are intertwined so that the question of jurisdiction is dependent upon the resolution of factual issues going to the merits of an action. “Whether the complaint states a cause of action on which relief could be granted is a question of law and just as issues of fact it must be decided after and not before the court has assumed jurisdiction over the controversy. If the court does later exercise its jurisdiction to determine the allegations in the complaint do not state a ground for relief, the dismissal of the case would be on the merits, not for want of jurisdiction.” *Bell v. Hood*, 327 U.S. 678, 682-83 (1946); *see also Sun Valley Gasoline, Inc. v. Ernst Enterp., Inc.*, 711 F.2d 138, 139-40 (9th Cir. 1983) (granting of motion to dismiss inappropriate when jurisdictional issue and substantive issues intertwined); *Thornhill Publ’g Co. v. Gen Tel.& Elec. Co.*, 594 F.2d 730, 734 (9th Cir. 1979) (when basis for subject matter jurisdiction and substantive claim for relief are

intertwined, motion to dismiss for lack of subject matter jurisdiction should only be granted when allegations of complaint are frivolous).

If the court resolves a Rule 12(b)(1) motion without holding an evidentiary hearing, all factual disputes should be resolved in favor of the nonmoving party. *Cholakyan*, 2012 WL 12861143 at \* 17; *In re Facebook Privacy Litigation*, 791 F. Supp. 2d 705, 710 (N.D. Cal. 2011) (in absence of full-fledged evidentiary hearing, disputes regarding subject matter jurisdiction are viewed in light most favorable to the opposing party).

### **Argument**

#### **I. CMI'S COMPLAINT ASSERTS VALID CLAIMS OF SHIPPING ACT VIOLATIONS**

##### **A. CMI's Complaint is Not Required to Include Evidence Supporting its Claims**

The Movants assert that their motion is “based on the absence of bill of lading documentation essential to complainants’ allegation that one or more respondents operated as an NVOCC.” Opposition at page 1. The Commission follows well-established precedent, however, in construing complaints in the light most favorable to the plaintiff and accepting all well-pled facts alleged in the complaint as true. *Mitsui OSK Lines Ltd v. Global Link*, 32 S.R.R. at 136 (FMC 2011). “The test of a complaint’s sufficiency simply is whether the documents’ allegations are detailed and informative enough to enable the defendant to respond.” *Id.* (citations omitted).

Thus, pursuant to Federal Rule of Civil Procedure 8, a pleading states a claim if it contains “a short and plain statement of the claim showing that the pleader is entitled to relief.” Fed. R. Civ. P. 8(a) (2). “Rule 8 *does not* require a plaintiff to attach *evidence* to support its claim as this would contravene the theoretical underpinnings of the notice pleading

requirement.” *Grooms v. Legge*, No. 09cv489–IEG–POR, 2009 WL 20131730 at \* 3 (S.D. Cal. 2009) (emphasis in original).

The Movants state that the *sine qua non* of an entity operating as an NVOCC is that it issues a bill of lading. Motion to Dismiss at page 8.<sup>3</sup> Thus, the Movants implicitly concede that if Service by Air issued a bill of lading it was acting as an NVOCC. Here, the Complaint specifically alleges that Service by Air issued bills of lading for the shipments at issue. Verified Complaint at ¶ 10. Accepting that allegation as true, as the Presiding Judge must do at the pleading stage pursuant to Fed. R. Civ. P. 12(b)(6), the Complaint states Shipping Act violations. Further, there is no requirement that CMI attach bills of lading or any other evidence supporting its claim at the pleading stage. Accordingly, the Movants’ Motion to Dismiss based upon failure to state a claim under Rule 12(b)(6) must be denied.

To the extent that the Movants seek to justify the relief sought on the grounds that the Commission lacks subject matter jurisdiction over the claims alleged, it also fails. The sole issue presented by the Movants is whether they were acting as NVOCCs, or holding themselves out as NVOCCs, for the shipments at issue. To the extent that they were, the Commission clearly has subject matter jurisdiction over the claims alleged, and the Movants clearly violated the Shipping Act by, *inter alia*: 1) acting as an OTI without having a license issued by the Commission; 2) assessing charges not in compliance with rates and charges contained in a tariff published with the Commission; and 3) improperly adding fees to storage and demurrage fees assessed by third parties while indicating to Complainant that the storage and demurrage fees were pass-throughs charged solely by those third parties. Thus, the Movants’ jurisdictional challenge, and the

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<sup>3</sup> As discussed below, CMI submits that the Commission recognizes that issuance of a bill of lading is only one factor that is considered in determining whether a party is acting as an NVOCC or has held itself out as such. *See, Tariffs, Filing Practices Etc. of Containerships, Inc.*, 6 SRR 483, 491 (FMC 1965) (a carrier does not lose its status as a common carrier if it uses shipping contracts other than bills of lading).

substantive allegations of the Complaint, are inextricably intertwined. Under these circumstances, the Presiding Judge should address the merits of the claims asserted after the development of a complete record via discovery, rather than prematurely attempt to resolve the merits on a bare bones jurisdictional basis. *Bell v. Hood*, 327 U.S. 678, 682-83. To the extent that the Presiding Judge were to so rule, without the benefit of a full evidentiary hearing, all factual disputes should be resolved in favor of CMI. *Cholakyan v. Mercedes-Benz USA, LLC*, No. CV 10-05944 MMM (JCx), 2012 WL 12861143 at \* 17 (C.D. Cal. 2012).

**B. Movants’ Attempt to Dispute the Factual Allegations in CMI’s Complaint Does Not Provide a Valid Basis for Dismissing CMI’s Complaint**

The Movants dispute the factual allegations of CMI’s Complaint that they acted as NVOCCs. As reflected above, in construing a motion to dismiss, the Commission construes a complaint in the light most favorable to the plaintiff and accepts all well-pled facts alleged in the complaint as true. *Mitsui OSK Lines Ltd v. Global Link*, 32 S.R.R. at 136 (FMC 2011). Thus, the “facts” the Movant submit in support of their Complaint do not justify the relief sought pursuant to Fed. R Civ. P. 12(b)(6). Consideration of extrinsic documents and evidence, such as the Affidavit of Edward Zasada, and the bills of lading attached as Exhibit 1 to the Movants’ motion, would convert a motion to dismiss into a motion for summary judgment, which would be inappropriate when the parties have not had an opportunity to conduct discovery. *Zak v. Chelsea Therapeutics Int’l Ltd.*, 780 F.3d 597, 606 (4th Cir. 2015).

Further, as reflected above, the relief sought is premature pursuant to 12(b)(1) because the jurisdictional defense alleged, *i.e.*, that the Commission lacks authority over the Movants because they have not acted as NVOCCs, is intertwined with the merits of the claims. As such, the Presiding Judge should permit CMI to obtain discovery before addressing the merits or the jurisdictional defenses asserted.

**C.     The Facts Asserted by the Movants are Unsupported and Do Not Warrant Dismissal**

To the extent that the Presiding Judge is willing to consider evidence beyond the face of the Complaint at this juncture, the Movants’ Motion still fails. The Movants submit an affidavit from Edward Zasada, Service by Air’s regional manager. Mr. Zasada asserts in relevant part that CMI contracted with Service by Air regarding the importation of 60 containers of plastic bags from China into the United States. *Id.* at ¶ 6. He states that the goods were to move by ocean transportation and by port-to-door service. *Id.* Mr. Sazada also asserts that the goods moved on through bills of lading to Service by Air’s facility in Bensenville, Illinois. *Id.* at ¶ 7. Finally, Mr. Zasada asserts that Service by Air engaged a trucking company, Freight Tech Cartage, Inc. (“Freight Tech”) to provide part of the intermodal transportation at issue and to store the goods, *Id.* at ¶ 9. Although Mr. Zasada fails to disclose how much Freight Tech allegedly charged for storage or what portion of the \$400,000 in demurrage collected from CMI was related to storage or demurrage charges assessed by Freight Tech, he asserts that Service by Air charged it for 1,400 storage days between April of 2014 and July of 2015. *Id.* at ¶ 12.

Despite the fact that Mr. Zasada attests under oath that Service by Air contracted with CMI regarding the importation of 60 containers of plastic bags from China into the United States via ocean transportation, Mr. Zasada baldly asserts that Service by Air “*has never participated in ocean transportation.*” *Id.* at ¶ 4 (emphasis supplied). Mr. Zasada’s own recitation of the facts however, confirms that, here, Service by Air was extensively participating in ocean transportation. To state to the contrary is nonsense.

Mr. Zasada’s sworn statement also reveals an alarming lack of candor. First, and foremost, Mr. Zasada fails to reveal that Service by Air issued bills of lading for the transportation at issue and took responsibility for the transportation in its representations to CMI.

See Exhibit 1 to Vega Dec.; Vega Dec. at ¶¶ 4, 7. Service by Air hides this fact although its own motion asserts that issuance of a bill of lading is the *sine qua non* that a party is acting as a NVOCC. Opposition at page 8. As reflected in the Declaration of Maria Vega, Service by Air and SBA Global Logistics also issued invoices in which they sought payment for Service by Air for “Ocean Freight,” “Container Demurrage” and “Detention.” See sample invoices attached as Exhibit 2 to Vega Dec. In addition, Service by Air contracted with Las Freight System Ltd. which issued bills of lading for the transportation at issue. See sample Las Freight bills of lading attached as Exhibit 13 to Vega Dec. Given these indisputable facts for the Movants to contend that they were not acting as NVOCCs and that Service by Air “has never participated in ocean transportation” is baseless.

The Declaration of Maria Vega also shows that in addition to the Movants invoicing CMI for ocean freight and container demurrage, they also invoiced CMI for air freight on containers that moved via steamship line. Thus, the Movants in at least one instance, charged and collected \$5,400 from CMI for transporting one 20-foot container by air, when in fact the container was transported (at significantly lower rates) by sea. See Vega Dec. at ¶¶ 10-11.

Dismissal of CMI’s Complaint at this stage would be particularly inappropriate given that the Movants have hidden, and continue to hide, the factual and legal basis for the over \$400,000 in demurrage and container storage charges recovered from CMI. Although CMI has repeatedly requested documentation substantiating that the demurrage charges at issue were, as the Movants asserted, simply pass through charges from steamship lines, the Movants have steadfastly refused to provide documentation supporting its assertions. Indeed, at this juncture, due to the Movants continued attempts to hide the ball, CMI cannot be certain as to how some of the containers at issue moved.

Finally, to the extent that the Movants suggest that the \$400,000 in demurrage charges assessed against CMI were charges arising from a motor carrier storing goods and thus are storage container charges beyond the scope of the Commission's jurisdiction, its assertion is belied by its Movants' own contemporaneous representations that the charges were demurrage charges being assessed by steamship lines. Further, having conceded that the goods at issue moved on through bills of lading to their inland destination, any argument that the Commission lacks jurisdiction over the charges at issue is baseless. 46 U.S.C. § 40102(6)(24)(25); 40501(a)(1); 40502(c)(2). Thus, again, Movants' representations in their Motion to Dismiss are contrary to their own contemporaneous statements to CMI.

**D. A Party Need Not Have Issued a Bill of Lading to Have Acted as an NVOCC**

The Movants' Motion to Dismiss fails as a matter of law to the extent that it is predicated upon the notion that an entity needs to have issued a bill of lading to have acted as an NVOCC. Well-established Commission precedent holds that a party need not have issued a bill of lading in order to have acted as an NVOCC. *See, e.g., Tariffs, Filing Practices Etc. of Containerships, Inc.*, 6 SRR 483, 491 (FMC 1965) (a carrier does not lose its status as a common carrier if it uses shipping contracts other than bills of lading); *Eurousa Shipping, Tober Group, Inc. - Possible Violations of Shipping Act*, 31 SRR 967, 982 (FMC 2009) (issuance of a bill of lading not required to establish a contract of carriage). *See* 46 U.S.C. § 40102(6)A (Shipping Act definition of "common carrier" does not require issuance of bills of lading.) Instead, the Commission has found that no single factor of an entity's operation is determinative of its status. *Id.* at 982. The Commission must evaluate the indicia of common carriage on a case-by-case basis. *Id.* Here, the invoices submitted by the Movants to CMI did not breakout which portion of the freight charges assessed were attributable to an underlying carrier and which portion was the Movants' freight forwarding charges, as is the common practice of a freight forwarder. *See, e.g.*, 46 C.F.R.

Section 515.32(d) (“licensed freight forwarder shall provide a complete breakout of its charges, and a true copy of any underlying document or bill of charges pertaining to the licensed freight forwarder’s invoice.”). In merely invoicing for “ocean freight” (or in some cases erroneously invoicing for “air freight”), the Movants were holding themselves out as common carriers rather than acting as licensed freight forwarders.

Moreover, here, Service by Air did issue bills of lading for the shipments at issue. The Movants themselves assert that this is the *sine qua non* of acting as an NVOCC, Opposition Motion at 8, and thus cannot legitimately dispute Service by Air’s status in this regard. To the extent that the evidence in the record thus far does not establish that SBA Consolidators issued bills of lading, it is not dispositive of whether SBA Consolidators acted in that capacity.

Respectfully submitted,



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Attorneys for CMI Distribution, Inc.

July 10, 2017

CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the foregoing document was delivered to the following address by electronic transmission, this 10<sup>th</sup> day of July 2017:

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Customs Services Inc.

  
\_\_\_\_\_  
Brendan Collins

### **Declaration of Maria T. Vega**

1. My name is Maria T. Vega. I am the Financial Controller of CMI Distribution, Inc. (“CMI”). I have acted in that capacity since 2014. This Declaration is based upon my personal knowledge.

2. CMI contracted with Service by Air, Inc. (“Service by Air”) to transport more than 60 containers of plastic bags from China into the United States. CMI requested that the goods move by ocean transportation and that the goods be delivered to door locations in the United States.

3. Service by Air and SBA Global Logistic Services, Inc. (“SBA Global Logistic Services”) invoiced CMI over \$400,000 in demurrage or storage fees associated with those shipments.

4. Service by Air issued bills of lading for the transportation at issue. Samples of Service by Air’s bills of lading are attached as Exhibit 1.

5. Although CMI requested that the goods be transported by ocean transportation, Service by Air issued airway bills for the movement of the goods. See Exhibit 1.

6. Service by Air’s bills of lading indicated that the goods were moving through locations where CMI does not believe they were being transported.

7. In issuing bills of lading for the transportation at issue, as well as representing to CMI that it was taking responsibility for the transportation of CMI’s shipments, Service by Air was acting and holding itself out as a carrier.

8. CMI understands that all of the containers at issue moved by ocean rather than by air, but cannot be certain because neither Service by Air nor SBA Global Logistic Services responded to CMI’s repeated requests for back up documentation regarding the shipments at issue.

9. Service by Air and SBA Global Logistic Services issued invoices to CMI for the ocean transportation at issue. Samples of Service by Air and SBA Global Logistic Services' invoices are attached as Exhibit 2. The invoices included charges for "ocean freight," "demurrage," "container demurrage," "detention," "cartage," and "container stripping."

10. In some instances, Service by Air and SBA Global Logistic Services issued invoices to CMI which contained charges for Air Freight. See sample invoice attached as Exhibit 3. The natural presumption regarding such invoices is that the goods were transported by air. A closer review of the supporting documentation that CMI has been able to obtain, however, reflects that although the Movants invoiced CMI for air freight, the goods actually moved by ocean. Thus, the invoice attached as Exhibit 3, for which air freight in the amount of \$5,400 was paid by CMI, references Container No. TCKU 1771451. A bill of lading issued by Las Freight, a Chinese based NVOCC retained by the Movants, shows that the same container actually was transported by the Mediterranean Shipping Company ("MSC") on the MSC Luciana. Exhibit 4. The fact that the goods moved by ocean, rather than by air, is confirmed by a U.S. Customs and Border Protection Entry Summary showing that the container came into the United States via the MSC Luciana. Exhibit 5.

11. The fact that CMI was billed \$5,400 for the transportation of one 20 foot container suggests that the Movants fraudulently billed CMI at air freight rates despite the fact the container moved on a steamship line.

12. Other instances where the Movants invoiced CMI for air freight, despite having been retained to provide ocean transportation are attached as Exhibit 6. CMI needs to obtain additional discovery to confirm that those good moved by ocean rather than air and that the movants fraudulently billed CMI at higher air freight rates.

13. On one occasion, CMI pointed out that it incorrectly had been invoiced for air freight. Exhibit 7. CMI acknowledged its error and then asserted that the invoice was for demurrage. *Id.*

14. SBA Consolidators, Inc. (“SBA Consolidators”) issued invoices to CMI for the transportation at issue.

15. Despite repeated requests from CMI, Service by Air and SBA Global Logistic Services refused to provide details regarding the amount of demurrage or storage charges assessed to CMI.

16. In communications with CMI, SBA Global Logistics Services represented that the SS [steamship] Line was giving SBA Global Logistics Services a difficult time regarding demurrage. *See* Exhibit 8.

17. In other communications with CMI, SBA Global Logistics Services represented that the container demurrage charges were non-negotiable because it had “already paid the SS [steamship] Line.” Exhibit 9. SBA Global Logistics Services also reported that the SS line will not accept any more delays.”

18. SBA Global Logistics Services reported that the demurrage charges were \$300 per day per container. *Id.*

19. CMI was never provided an invoice from the steamship line or other documentation reflecting the basis for charging CMI \$300 (or any other amount) per day for container demurrage.

20. In one instance, SBA Global Logistic Services informed CMI that if it did not pay demurrage on three containers, “the steamship line was going to confiscate [the containers] and put a lien on them.” Exhibit 10.

21. SBA Global Logistics Services routinely referred to “open airbills” for which it sought payment from CMI. When CMI sought documentation in that regard, it was provided with invoices referencing ocean freight. See sample correspondence attached as Exhibit 11.

22. I have reviewed the Affidavit of Edward A. Zasada. Given that Service by Air issued bills of lading for the ocean transportation at issue, invoiced CMI for ocean transportation and container demurrage, and contracted with a trucker to provide the inland portion of the intermodal transportation at issue, his statement that Service by Air “has never participated in ocean transportation” is incorrect.

23. In addition to issuing bills of lading and charging CMI for container detention regarding through shipments of goods, CMI apparently contracted with a China based NVOCC, Las Freight System Ltd. (“Las Freight”) to provide NVOCC service regarding the shipments at issue. Las Freight issued bills of lading for such shipments. Sample Las Freight bills of lading are attached as Exhibit 12.

24. Bills of lading purportedly issued by other ocean transportation providers are attached as Exhibit 1 to Mr. Zasada’s Affidavit. To my knowledge, CMI has never seen any of those bills of lading before and cannot attest to their authenticity.

25. The Statement of Service by Air and SBA Global Logistic Services that CMI “necessarily received copies of operative bills of lading at the time of the transports” is false. Although CMI repeatedly asked the Movants for supporting documentation, such documents were never provided.

Pursuant to 28 U.S.C. §1746, I declare under penalty of perjury that the foregoing is true and correct.

Executed in Wheeling, Illinois, on this 7<sup>th</sup> day of July, 2017.

*Maria T. Vega*

Maria T. Vega

# **EXHIBIT 1**

PVG

N770915

|                                                                                                                                                               |                                        |                                                                                                                                                                                                                                                                                                 |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|
| Shipper's Name and Address<br><b>YANTAI FOODPACK<br/>IND. ZONE FUSHAN DIST<br/>YANTAI<br/>SHANDONG CHINA tele:6306161212</b>                                  |                                        | Shipper's Account Number<br><b>753740</b>                                                                                                                                                                                                                                                       |                                   | Not Negotiable<br><b>Air Waybill</b><br>Issued by<br><b>SERVICE BY AIR, INC.<br/>811 THORNDAL AVE<br/>BENSENVILLE IL 60106<br/>MEMBER OF I.A.T.A.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                     |
| Consignee's Name and Address<br><b>ULTA DIST<br/>4570 W. LOWER BUCKEYE RD<br/>PHOENIX 85043 UNITED STATES</b>                                                 |                                        | Consignee's Account Number                                                                                                                                                                                                                                                                      |                                   | Copies 1, 2 and 3 of this Waybill are originals and have the same validity.<br>It is agreed that the goods described herein are accepted in apparent good order and condition (except as noted) for carriage SUBJECT TO THE CONDITIONS OF CONTRACT ON THE REVERSE HEREOF. ALL GOODS MAY BE CARRIED BY ANY OTHER MEANS INCLUDING ROAD OR ANY OTHER CARRIER UNLESS SPECIFIC CONTRARY INSTRUCTIONS ARE GIVEN HEREON BY THE SHIPPER, AND SHIPPER AGREES THAT THE SHIPMENT MAY BE CARRIED VIA INTERMEDIATE STOPPING PLACES WHICH THE CARRIER DEEMS APPROPRIATE. THE SHIPPER'S ATTENTION IS DRAWN TO THE NOTICE CONCERNING CARRIER'S LIMITATION OF LIABILITY. Shipper may increase such limitation of liability by declaring a higher value for carriage and paying a supplemental charge if required. |                     |
| Issuing Carrier's Agent Name and City<br><b>SERVICE BY AIR, INC.<br/>811 THORNDAL AVE<br/>BENSENVILLE IL 60106</b>                                            |                                        | Accounting Information<br><b>MAWB# 998 MATS2949375000 HAWB# N770915<br/>BILL TO: CMI DISTRIBUTION - PACKAGING<br/>718845 555 ALLENDALE DR<br/>WHEELING IL 60090</b>                                                                                                                             |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| Agent's IATA Code<br><b>01-1-7432/0022</b>                                                                                                                    |                                        | Account No                                                                                                                                                                                                                                                                                      |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| Airport of Departure (Addr. of First Carrier) and Requested Routing<br><b>SHANGHAI</b>                                                                        |                                        | Reference Number                                                                                                                                                                                                                                                                                |                                   | Optional Shipping Information                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                     |
| To<br><b>PHX</b>                                                                                                                                              | By First Carrier<br><b>NEW CARRIER</b> | Routing and Destination<br>to by to by                                                                                                                                                                                                                                                          | Currency<br><b>USD</b>            | Per Code<br><b>P</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | WTF/VAL<br><b>X</b> |
| Airport of Destination<br><b>PHOENIX</b>                                                                                                                      |                                        | Requested Flight/Date<br><b>08</b>                                                                                                                                                                                                                                                              | Amount of Insurance<br><b>NIL</b> | Declared Value for Carriage<br><b>MAX FREE</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                     |
| Handling Information                                                                                                                                          |                                        | Declared Value for Customs<br><b>NVD</b>                                                                                                                                                                                                                                                        |                                   | INSURANCE - If carrier offers insurance, and such insurance is requested in accordance with the conditions thereof, indicate amount to be insured in figures in box marked "Amount of Insurance".                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                     |
| These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination |                                        | Diversion contrary to U.S. law prohibited                                                                                                                                                                                                                                                       |                                   | SCI                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                     |
| No. of Pieces<br>RCP                                                                                                                                          | Gross Weight<br>kg<br>lb               | Rate Class<br>Commodity Item No.                                                                                                                                                                                                                                                                | Chargeable Weight                 | Rate / Charge                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Total               |
| 1                                                                                                                                                             | 41454 L<br>18803.0 K                   | GC                                                                                                                                                                                                                                                                                              | 18803                             | AS AGREED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | AS AGREED           |
| 1                                                                                                                                                             | 18803.0 K                              |                                                                                                                                                                                                                                                                                                 |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | AS AGREED           |
| Prepaid / Weight Charge / Collect                                                                                                                             |                                        | Other Charges                                                                                                                                                                                                                                                                                   |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| AS AGREED                                                                                                                                                     |                                        |                                                                                                                                                                                                                                                                                                 |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| Valuation Charge                                                                                                                                              |                                        |                                                                                                                                                                                                                                                                                                 |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| Tax                                                                                                                                                           |                                        |                                                                                                                                                                                                                                                                                                 |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| Total Other Charges Due Agent                                                                                                                                 |                                        | Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods, such part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations. |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| Total Other Charges Due Carrier                                                                                                                               |                                        |                                                                                                                                                                                                                                                                                                 |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| AS AGREED                                                                                                                                                     |                                        | <br><b>SERVICE BY AIR, INC.</b><br>Signature of Shipper or his Agent                                                                                                                                       |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| Total Prepaid                                                                                                                                                 |                                        | Signature of Issuing Carrier or its Agent                                                                                                                                                                                                                                                       |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| AS AGREED                                                                                                                                                     |                                        |                                                                                                                                                                                                                                                                                                 |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| Currency Conversion Rates                                                                                                                                     |                                        | 09/29/14 SHANGHAI                                                                                                                                                                                                                                                                               |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| CC Charges in Dest. Currency                                                                                                                                  |                                        | Executed on (date) at (place)                                                                                                                                                                                                                                                                   |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
| For Carriers Use only at Destination                                                                                                                          |                                        | Charges at Destination                                                                                                                                                                                                                                                                          |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |
|                                                                                                                                                               |                                        | Total Collect Charges                                                                                                                                                                                                                                                                           |                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                     |

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|---------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------|---------------------------------------------------------------------------|----------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------|
| Shipper's Name and Address<br><b>ZHANGJIAGANG EVERBRIGHT<br/>5F NEW HONGJI BLDG<br/>HUACHANG ROAD<br/>JIANGSU CHINA tele:6306161212</b>                       |                                        | Shipper's Account Number<br><b>757942</b>                                 |                                  | Not Negotiable<br><b>Air Waybill</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                | SERVICE BY AIR, INC.<br>811 THORNDALE AVE<br>BENSENVILLE IL 60105<br>MEMBER OF I.A.T.A.                                                                                                           |                                                              |
| Consignee's Name and Address<br><b>CMi DISTRIBUTION - PACKAGING<br/>555 ALLENDALE DR<br/>WHEELING IL 80090</b>                                                |                                        | Consignee's Account Number<br><b>8479477400</b>                           |                                  | It is agreed that the goods described herein are accepted in apparent good order and condition (except as noted) for carriage SUBJECT TO THE CONDITIONS OF CONTRACT ON THE REVERSE HEREOF ALL GOODS MAY BE CARRIED BY ANY OTHER MEANS INCLUDING ROAD OR ANY OTHER CARRIER UNLESS SPECIFIC CONTRARY INSTRUCTIONS ARE GIVEN HEREON BY THE SHIPPER, AND SHIPPER AGREES THAT THE SHIPMENT MAY BE CARRIED VIA INTERMEDIATE STOPPING PLACES WHICH THE CARRIER DEEMS APPROPRIATE. THE SHIPPER'S ATTENTION IS DRAWN TO THE NOTICE CONCERNING CARRIER'S LIMITATION OF LIABILITY. Shipper may increase such limitation of liability by declaring a higher value for carriage and paying a supplemental charge if required. |                                                |                                                                                                                                                                                                   |                                                              |
| Issuing Carrier's Agent Name and City<br><b>SERVICE BY AIR, INC.<br/>811 THORNDALE AVE<br/>BENSENVILLE IL 60105</b>                                           |                                        | Accounting Information<br><b>MAWB# 998 PABVPILN08219751 HAWB# N770888</b> |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| Agent's IATA Code<br><b>01-1-7432/0022</b>                                                                                                                    |                                        | Account No.                                                               |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| Airport of Departure (Addr. of First Carrier) and Requested Routing<br><b>HONG KONG</b>                                                                       |                                        |                                                                           |                                  | Reference Number                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                | Optional Shipping Information                                                                                                                                                                     |                                                              |
| To<br><b>ORD</b>                                                                                                                                              | By First Carrier<br><b>NEW CARRIER</b> | Routing and Destination                                                   | to                               | by                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | to                                             | by                                                                                                                                                                                                |                                                              |
| Currency<br><b>USD</b>                                                                                                                                        |                                        | Chg Code<br><b>P</b>                                                      | WT/VAL<br><b>X</b>               | Other<br><b>X</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Declared Value for Carriage<br><b>MAX FREE</b> |                                                                                                                                                                                                   | Declared Value for Customs<br><b>NVD</b>                     |
| Airport of Destination<br><b>O'HARE INT'L</b>                                                                                                                 |                                        | Requested Flight/Date<br><b>1439E/10</b>                                  |                                  | Amount of Insurance<br><b>NIL</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                | INSURANCE - If carrier offers insurance, and such insurance is requested in accordance with the conditions thereof, indicate amount to be insured in figures in box marked "Amount of Insurance". |                                                              |
| Handling Information                                                                                                                                          |                                        |                                                                           |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination |                                        |                                                                           |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   | SCI                                                          |
| No. of Pieces<br>RCP                                                                                                                                          | Gross Weight                           | kg<br>lb                                                                  | Rate Class<br>Commodity Item No. | Chargeable Weight                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | Rate / Charge                                  | Total                                                                                                                                                                                             | Nature and Quantity of Goods<br>(incl. Dimensions or Volume) |
| 1                                                                                                                                                             | 41887<br>19000.0                       | L<br>K                                                                    | GC                               | 19000                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | AS AGREED                                      | AS AGREED                                                                                                                                                                                         | VINYL GLOVES<br>PCIU8079300                                  |
| 1                                                                                                                                                             | 19000.0                                | K                                                                         |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                | AS AGREED                                                                                                                                                                                         |                                                              |
| Prepaid                                                                                                                                                       |                                        | Weight Charge                                                             |                                  | Collect                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                | Other Charges                                                                                                                                                                                     |                                                              |
| AS AGREED                                                                                                                                                     |                                        | Valuation Charge                                                          |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
|                                                                                                                                                               |                                        | Tax                                                                       |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| Total Other Charges Due Agent                                                                                                                                 |                                        |                                                                           |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| Total Other Charges Due Carrier                                                                                                                               |                                        |                                                                           |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| AS AGREED                                                                                                                                                     |                                        |                                                                           |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| Total Prepaid                                                                                                                                                 |                                        | Total Collect                                                             |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| AS AGREED                                                                                                                                                     |                                        |                                                                           |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| Currency Conversion Rates                                                                                                                                     |                                        | CC Charges in Dest. Currency                                              |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
|                                                                                                                                                               |                                        |                                                                           |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |
| For Carriers Use only at Destination                                                                                                                          |                                        | Charges at Destination                                                    |                                  | Total Collect Charges                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                |                                                                                                                                                                                                   |                                                              |
|                                                                                                                                                               |                                        |                                                                           |                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                                                                                                                                                                   |                                                              |

SERVICE BY AIR, INC.



Signature of Shipper or his Agent

09/25/14

HONG KONG

Executed on (date)

at (place)

Signature of Issuing Carrier or its Agent

N770888

N770614

|                                                                                                                                                                                                                                                                                                 |              |                                                             |    |                                                                                                                                                                                                  |                    |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|-------------------------------------------------------------|----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| Shipper's Name and Address<br>HONG KONG AIRWAYS LTD<br>ROOM 1107, 21/F, 21/F WING<br>308 HENNESSY RD<br>HONG KONG TEL: 6306161                                                                                                                                                                  |              | Shipper's Account Number                                    |    | Not Negotiable<br><b>Air Waybill</b><br>Issued by<br>HONG KONG AIRWAYS LTD<br>MEMBER OF I.A.T.A.                                                                                                 |                    |
| Consignee's Name and Address<br>CMI DISTRIBUTION - HONGKONG<br>555 ALLENDALE DR<br>HONG KONG TEL: 40070                                                                                                                                                                                         |              | Consignee's Account Number                                  |    | Copies 1, 2 and 3 of this Air Waybill are originals and have the same validity.                                                                                                                  |                    |
| Issuing Carrier's Agent Name and City<br>SERVICE BY AIR, INC.<br>811 HURON AVE<br>BIRMINGHAM AL 35203                                                                                                                                                                                           |              | Accounting Information<br>TRAN# 77 LAXA071017 HAWK# H770614 |    |                                                                                                                                                                                                  |                    |
| Agent's IATA Code<br>01-1-7832/0022                                                                                                                                                                                                                                                             |              | Account No.                                                 |    |                                                                                                                                                                                                  |                    |
| Airport of Departure (Addr. of First Carrier) and Requested Routing<br>HONG KONG                                                                                                                                                                                                                |              | Reference Number                                            |    | Optional Shipping Information                                                                                                                                                                    |                    |
| To: CMI By First Carrier: NEW CARRIER                                                                                                                                                                                                                                                           |              | Routing and Destination                                     |    | Currency: USD                                                                                                                                                                                    |                    |
| Airport of Destination<br>CHINA INTL                                                                                                                                                                                                                                                            |              | Requested Flight/Date                                       |    | Declared Value for Carriage                                                                                                                                                                      |                    |
| Handling Information                                                                                                                                                                                                                                                                            |              | Amount of Insurance                                         |    | INSURANCE - If carrier offers insurance, and such insurance is requested in accordance with the conditions thereof, indicate amount to be insured in figures in box marked "Amount of Insurance" |                    |
| These commodities, technology, or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination                                                                                                                                  |              |                                                             |    |                                                                                                                                                                                                  |                    |
| Diversion contrary to U.S. law prohibited.                                                                                                                                                                                                                                                      |              |                                                             |    |                                                                                                                                                                                                  |                    |
| SCI                                                                                                                                                                                                                                                                                             |              |                                                             |    |                                                                                                                                                                                                  |                    |
| No. of Pieces RCP                                                                                                                                                                                                                                                                               | Gross Weight | kg                                                          | lb | Rate Class                                                                                                                                                                                       | Commodity Item No. |
| 1                                                                                                                                                                                                                                                                                               | 45.65        | 10                                                          | 23 | 125                                                                                                                                                                                              |                    |
| Chargeable Weight                                                                                                                                                                                                                                                                               |              | Rate                                                        |    | Total                                                                                                                                                                                            |                    |
| 45.65                                                                                                                                                                                                                                                                                           |              | 0.00                                                        |    | 4565.00                                                                                                                                                                                          |                    |
| Prepaid                                                                                                                                                                                                                                                                                         |              | Weight Charge                                               |    | Collect                                                                                                                                                                                          |                    |
| 4565.00                                                                                                                                                                                                                                                                                         |              |                                                             |    |                                                                                                                                                                                                  |                    |
| Valuation Charge                                                                                                                                                                                                                                                                                |              | Tax                                                         |    | Total Other Charges Due Agent                                                                                                                                                                    |                    |
|                                                                                                                                                                                                                                                                                                 |              |                                                             |    | 2000.45                                                                                                                                                                                          |                    |
| Total Other Charges Due Carrier                                                                                                                                                                                                                                                                 |              |                                                             |    |                                                                                                                                                                                                  |                    |
| Total Prepaid                                                                                                                                                                                                                                                                                   |              | Total Collect                                               |    |                                                                                                                                                                                                  |                    |
| 7465.45                                                                                                                                                                                                                                                                                         |              |                                                             |    |                                                                                                                                                                                                  |                    |
| Currency Conversion Rates                                                                                                                                                                                                                                                                       |              | CC Charges in Dest. Currency                                |    |                                                                                                                                                                                                  |                    |
|                                                                                                                                                                                                                                                                                                 |              |                                                             |    |                                                                                                                                                                                                  |                    |
| For Carriers Use only at Destination                                                                                                                                                                                                                                                            |              | Charges at Destination                                      |    | Total Collect Charges                                                                                                                                                                            |                    |
|                                                                                                                                                                                                                                                                                                 |              |                                                             |    | 1010.45                                                                                                                                                                                          |                    |
|                                                                                                                                                                                                                                                                                                 |              |                                                             |    | 1855.00                                                                                                                                                                                          |                    |
| Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods, such part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations. |              |                                                             |    |                                                                                                                                                                                                  |                    |
| SERVICE BY AIR, INC.                                                                                                                                                                                                                                                                            |              |                                                             |    |                                                                                                                                                                                                  |                    |
| Signature of Shipper or his Agent                                                                                                                                                                                                                                                               |              |                                                             |    |                                                                                                                                                                                                  |                    |
| Executed on (date) 08/20/14 at (place) HONG KONG                                                                                                                                                                                                                                                |              |                                                             |    |                                                                                                                                                                                                  |                    |
| Signature of Issuing Carrier or its Agent                                                                                                                                                                                                                                                       |              |                                                             |    |                                                                                                                                                                                                  |                    |

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|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|----------------------------------------|-------------------|---------------------------------------------------------------------------------|---------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------|
| Shipper's Name and Address<br>ZIMMERMAN'S OVERSEAS<br>5 NEW HAVEN BLVD<br>NEW HAVEN, CT 06511-1000                                                                                    |                                 | Shipper's Account Number<br>0000000000 |                   | Not Negotiable<br><b>Air Waybill</b>                                            |         | ISSUED BY AIR, INC.<br>311 THURSDALE AVE<br>BRIDGEVILLE IL 60009<br>PHONE 815-421-1111                                                                                                                                                                                                          |                                         |
| Consignee's Name and Address<br>ONE DISTRIBUTION - PACKAGING<br>750 GLENDALE DR<br>MILWAUKEE IL 60009<br>0000000000                                                                   |                                 | Consignee's Account Number             |                   | Copies 1, 2 and 3 of this Air Waybill are originals and have the same validity. |         |                                                                                                                                                                                                                                                                                                 |                                         |
| Issuing Carrier's Agent Name and City<br>SERVICE BY AIR, INC.<br>311 THURSDALE AVE<br>BRIDGEVILLE IL 60009                                                                            |                                 |                                        |                   | Accounting Information<br>PAYMENT TO PAYEE'S ACCOUNT NO. 0000000000 N770888     |         |                                                                                                                                                                                                                                                                                                 |                                         |
| Agent's IATA Code<br>01-1-7432/0002                                                                                                                                                   |                                 | Account No.                            |                   |                                                                                 |         |                                                                                                                                                                                                                                                                                                 |                                         |
| Airport of Departure (Addr. of First Carrier) and Requested Routing<br>HONG KONG                                                                                                      |                                 |                                        |                   | Reference Number                                                                |         | Optional Shipping Information                                                                                                                                                                                                                                                                   |                                         |
| To<br>ORD                                                                                                                                                                             | By First Carrier<br>NEW CARRIER | to                                     | by                | to                                                                              | by      | Currency<br>USD                                                                                                                                                                                                                                                                                 | Declared Value for Carriage<br>MAX LIFE |
| Airport of Destination<br>O'HARE INT'L                                                                                                                                                |                                 | Requested Flight/Date<br>1439E/10      |                   | Amount of Insurance<br>NIL                                                      |         | Declared Value for Customs<br>N/A                                                                                                                                                                                                                                                               |                                         |
| Handling Information<br>These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination |                                 |                                        |                   | Diversion contrary to U.S. law prohibited.                                      |         |                                                                                                                                                                                                                                                                                                 |                                         |
| No. of Pieces<br>RCP                                                                                                                                                                  | Gross Weight<br>kg              | Rate Class<br>Commodity Item No.       | Chargeable Weight | Rate<br>Charge                                                                  | Total   | Nature and Quantity of Goods<br>(incl. Dimensions or Volume)                                                                                                                                                                                                                                    |                                         |
| 1                                                                                                                                                                                     | 1.00                            |                                        |                   | 0.00                                                                            | 4130.00 | VINYL GLASS<br>PC1307730                                                                                                                                                                                                                                                                        |                                         |
| 1                                                                                                                                                                                     |                                 |                                        |                   |                                                                                 | 4130.00 |                                                                                                                                                                                                                                                                                                 |                                         |
| Prepaid<br>4130.00                                                                                                                                                                    |                                 | Weight Charge                          |                   | Collect                                                                         |         | Other Charges                                                                                                                                                                                                                                                                                   |                                         |
| Valuation Charge                                                                                                                                                                      |                                 | Tax                                    |                   | Total Other Charges Due Agent<br>1373.75                                        |         | IMPORT DUTY/TAX<br>1373.75                                                                                                                                                                                                                                                                      |                                         |
| Total Other Charges Due Carrier                                                                                                                                                       |                                 |                                        |                   |                                                                                 |         | CONTAINER DEDUCTION<br>1400.00                                                                                                                                                                                                                                                                  |                                         |
| Total Prepaid<br>5503.75                                                                                                                                                              |                                 | Total Collect                          |                   |                                                                                 |         | Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods, such part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations. |                                         |
| Currency Conversion Rates                                                                                                                                                             |                                 | CC Charges in Dest. Currency           |                   | Executed on (date)<br>09/25/14                                                  |         | Signature of Shipper or his Agent<br>SERVICE BY AIR, INC.<br>Global Logistics Services                                                                                                                                                                                                          |                                         |
| For Carriers Use only at Destination                                                                                                                                                  |                                 | Charges at Destination                 |                   | Total Collect Charges                                                           |         | Signature of Issuing Carrier or its Agent                                                                                                                                                                                                                                                       |                                         |

|                                                                                                                                                                                                                                                                                                            |              |                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                |             |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|-----------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| Shipper's Name and Address<br><br>APPROX 121-01141<br>700 100 100 100<br>YINIA                                                                                                                                                                                                                             |              | Shipper's Account Number<br><br>COPY 3                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Not Negotiable<br><b>Air Waybill</b><br>Issued by<br>Copies 1, 2 and 3 of this Air Waybill are originals and have the same validity.                                                                                                                           |             |
| Consignee's Name and Address<br><br>C/O DISCOUNT STORES<br>200 100 100 100<br>WHEELER 100 100                                                                                                                                                                                                              |              | Consignee's Account Number                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                |             |
| Issuing Carrier's Agent Name and City<br><br>200 100 100 100<br>100 100 100 100                                                                                                                                                                                                                            |              | Accounting Information                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                |             |
| Agent's IATA Code                                                                                                                                                                                                                                                                                          |              | Account No                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                |             |
| Airport of Departure (Addr. of First Carrier) and Requested Routing                                                                                                                                                                                                                                        |              | Reference Number                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Optional Shipping Information                                                                                                                                                                                                                                  |             |
| To By First Carrier Routing and Destination<br>to by to by<br>Airport of Destination Requested Flight/Date                                                                                                                                                                                                 |              | Currency<br>Coded Code PPD COLL PPD COLL<br>Amount of Insurance |                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Declared Value for Carriage<br>Declared Value for Customs<br>INSURANCE - If carrier offers insurance, and such insurance is requested in accordance with the conditions thereof, indicate amount to be insured in figures in box marked "Amount of Insurance". |             |
| These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination<br>Diversion contrary to U.S. law prohibited.                                                                                                |              |                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                |             |
| No. of Pieces RCP                                                                                                                                                                                                                                                                                          | Gross Weight | kg lb                                                           | Rate Class                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Chargeable Weight                                                                                                                                                                                                                                              | Rate Charge |
|                                                                                                                                                                                                                                                                                                            |              |                                                                 | Commodity Item No.                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                | Total       |
|                                                                                                                                                                                                                                                                                                            |              |                                                                 | Nature and Quantity of Goods (Incl. Dimensions or Volume)                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                |             |
| Prepaid Weight Charge Collect<br>Valuation Charge<br>Tax<br>Total Other Charges Due Agent<br>Total Other Charges Due Carrier<br>Total Prepaid Total Collect<br>Currency Conversion Rates CC Charges in Dest. Currency<br>For Carriers Use only at Destination Charges at Destination Total Collect Charges |              |                                                                 | Other Charges<br>IMPROPERITY/TAX<br>DETENTION<br>Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods, each part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations.<br>Signature of Shipper or his Agent<br>Executed on (date) nt (place) Signature of Issuing Carrier or its Agent |                                                                                                                                                                                                                                                                |             |

| Shipper's Name and Address<br><br><br>2100 WASH BLVD - NEW YORK 10007                                                                                         |                  | Shipper's Account Number     |                                  | Not Negotiable<br><h2 style="margin:0;">Air Waybill</h2> Issued by<br><br>Copies 1, 2 and 3 of this Air Waybill are originals and have the same validity. |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|------------------------------|----------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------|--------|-------|--------------------------------------------|----------------------------|-----|
| Consignee's Name and Address<br><br><br>100 WILSON BLVD<br>NEW YORK 10007                                                                                     |                  | Consignee's Account Number   |                                  | Accounting Information                                                                                                                                    |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| Issuing Carrier's Agent Name and City<br><br><br>NEW YORK 10007                                                                                               |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| Agent's IATA Code                                                                                                                                             |                  | Account No.                  |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| Airport of Departure (Addr. of First Carrier) and Requested Routing                                                                                           |                  |                              |                                  | Reference Number                                                                                                                                          |               | Optional Shipping Information                                                                                                                                                                                                                                                                   |                                                           |        |       |                                            |                            |     |
| To                                                                                                                                                            | By First Carrier | Routing and Destination      | to                               | by                                                                                                                                                        | to            | by                                                                                                                                                                                                                                                                                              | Currency                                                  | WT/VAL | Other | Declared Value for Carriage                | Declared Value for Customs |     |
| Airport of Destination                                                                                                                                        |                  | Requested Flight/Date        |                                  | Amount of Insurance                                                                                                                                       |               | INSURANCE - If carrier offers insurance and such insurance is requested in accordance with the conditions thereof, indicate amount to be insured in figures in box marked "Amount of Insurance".                                                                                                |                                                           |        |       |                                            |                            |     |
| Handling Information                                                                                                                                          |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       | Diversion contrary to U.S. law prohibited. |                            | SCI |
| No. of Pieces RCP                                                                                                                                             | Gross Weight     | kg lb                        | Rate Class<br>Commodity Item No. | Chargeable Weight                                                                                                                                         | Rate / Charge | Total                                                                                                                                                                                                                                                                                           | Nature and Quantity of Goods (incl. Dimensions or Volume) |        |       |                                            |                            |     |
|                                                                                                                                                               |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
|                                                                                                                                                               |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
|                                                                                                                                                               |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
|                                                                                                                                                               |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| Prepaid                                                                                                                                                       |                  | Weight Charge                |                                  | Collect                                                                                                                                                   |               | Other Charges                                                                                                                                                                                                                                                                                   |                                                           |        |       |                                            |                            |     |
| Valuation Charge                                                                                                                                              |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| Tax                                                                                                                                                           |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| Total Other Charges Due Agent                                                                                                                                 |                  |                              |                                  |                                                                                                                                                           |               | Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods, such part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations. |                                                           |        |       |                                            |                            |     |
| Total Other Charges Due Carrier                                                                                                                               |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
|                                                                                                                                                               |                  |                              |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| Total Prepaid                                                                                                                                                 |                  | Total Collect                |                                  | Signature of Shipper or his Agent                                                                                                                         |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| Currency Conversion Rates                                                                                                                                     |                  | CC Charges in Dest. Currency |                                  |                                                                                                                                                           |               |                                                                                                                                                                                                                                                                                                 |                                                           |        |       |                                            |                            |     |
| For Carriers Use only at Destination                                                                                                                          |                  | Charges at Destination       |                                  | Total Collect Charges                                                                                                                                     |               | Executed on (date)                      at (place)                      Signature of Issuing Carrier or its Agent                                                                                                                                                                               |                                                           |        |       |                                            |                            |     |

|                                                                                                                                                               |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
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| Shipper's Name and Address                                                                                                                                    |                  | Shipper's Account Number   |    | Not Negotiable<br><h2 style="margin: 0;">Air Waybill</h2>                       |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Consignee's Name and Address                                                                                                                                  |                  | Consignee's Account Number |    | Issued by                                                                       |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
|                                                                                                                                                               |                  |                            |    | Copies 1, 2 and 3 of this Air Waybill are originals and have the same validity. |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Issuing Carrier's Agent Name and City                                                                                                                         |                  |                            |    | Accounting Information                                                          |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Agent's IATA Code                                                                                                                                             |                  | Account No.                |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Airport of Departure (Addr of First Carrier) and Requested Routing                                                                                            |                  |                            |    | Reference Number                                                                |                    | Optional Shipping Information                                                                                                                                                                    |        |        |                             |                                                           |
| To                                                                                                                                                            | By First Carrier | to                         | by | to                                                                              | by                 | Currency                                                                                                                                                                                         | WT/VAL | Other  | Declared Value for Carriage | Declared Value for Customs                                |
| Airport of Destination                                                                                                                                        |                  | Requested Flight/Date      |    | Amount of Insurance                                                             |                    | INSURANCE - If carrier offers insurance, and such insurance is requested in accordance with the conditions thereof, indicate amount to be insured in figures in box marked "Amount of Insurance" |        |        |                             |                                                           |
| Handling Information                                                                                                                                          |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             | Diversion contrary to U.S. law prohibited.                |
| SCI                                                                                                                                                           |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| No. of Pieces RCP                                                                                                                                             | Gross Weight     | kg                         | lb | Rate Class                                                                      | Commodity Item No. | Chargeable Weight                                                                                                                                                                                | Rate   | Charge | Total                       | Nature and Quantity of Goods (Incl. Dimensions or Volume) |
|                                                                                                                                                               |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Prepaid                                                                                                                                                       |                  | Weight Charge              |    | Collect                                                                         |                    | Other Charges                                                                                                                                                                                    |        |        |                             |                                                           |
| Valuation Charge                                                                                                                                              |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Tax                                                                                                                                                           |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Total Other Charges Due Agent                                                                                                                                 |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Total Other Charges Due Carrier                                                                                                                               |                  |                            |    |                                                                                 |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Total Prepaid                                                                                                                                                 |                  |                            |    | Total Collect                                                                   |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| Currency Conversion Rates                                                                                                                                     |                  |                            |    | CC Charges in Dest. Currency                                                    |                    |                                                                                                                                                                                                  |        |        |                             |                                                           |
| For Carriers Use only at Destination                                                                                                                          |                  | Charges at Destination     |    | Total Collect Charges                                                           |                    | Executed on (date) at (place) Signature of Issuing Carrier or its Agent                                                                                                                          |        |        |                             |                                                           |

Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods, such part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations.

Signature of Shipper or his Agent

|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
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| Shipper's Name and Address                                                                                                                                    |                  | Shipper's Account Number   |                                 | Not Negotiable<br><h2 style="margin: 0;">Air Waybill</h2>                       |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 | Issued by                                                                       |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 | Copies 1, 2 and 3 of this Air Waybill are originals and have the same validity. |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| Consignee's Name and Address                                                                                                                                  |                  | Consignee's Account Number |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| Issuing Carrier's Agent Name and City                                                                                                                         |                  |                            |                                 | Accounting Information                                                          |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| Agent's IATA Code                                                                                                                                             |                  | Account No.                |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| Airport of Departure (Addr of First Carrier) and Requested Routing                                                                                            |                  |                            |                                 | Reference Number                                                                |                              | Optional Shipping Information                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| To                                                                                                                                                            | By First Carrier | Routing and Destination    | to                              | by                                                                              | to                           | by                                                                                                                                                                                                | Currency                                                                                                                                                                                                                                                                                                             | WT/VAL                                                    | Other | Declared Value for Carriage               | Declared Value for Customs |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| Airport of Destination                                                                                                                                        |                  | Requested Flight Date      |                                 | Amount of Insurance                                                             |                              | INSURANCE - If carrier offers insurance, and such insurance is requested in accordance with the conditions thereof, indicate amount to be insured in figures in box marked "Amount of Insurance". |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| Handling Information                                                                                                                                          |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       | Diversion contrary to U.S. law prohibited |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       | SCI                                       |                            |
| No. of Pieces RCP                                                                                                                                             | Gross Weight     | kg                         | Rate Class                      | Chargeable Weight                                                               | Rate                         | Charge                                                                                                                                                                                            | Total                                                                                                                                                                                                                                                                                                                | Nature and Quantity of Goods (incl. Dimensions or Volume) |       |                                           |                            |
|                                                                                                                                                               |                  |                            | Commodity Item No.              |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| Prepaid                                                                                                                                                       |                  |                            | Weight Charge                   |                                                                                 | Collect                      |                                                                                                                                                                                                   | Other Charges<br><br>Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods, such part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations. |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            | Valuation Charge                |                                                                                 |                              |                                                                                                                                                                                                   | Signature of Shipper or his Agent<br><br>Executed on (date) at (place) Signature of issuing Carrier or its Agent                                                                                                                                                                                                     |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            | Tax                             |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            | Total Other Charges Due Agent   |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            | Total Other Charges Due Carrier |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            | Total Prepaid                   |                                                                                 | Total Collect                |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            | Currency Conversion Rates       |                                                                                 | CC Charges in Dest. Currency |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            | Charges at Destination          |                                                                                 | Total Collect: Charges       |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
|                                                                                                                                                               |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |
| For Carriers Use only at Destination                                                                                                                          |                  |                            |                                 |                                                                                 |                              |                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                      |                                                           |       |                                           |                            |

|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|----------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------|-------------------------------------------|
| Shipper's Name and Address                                                                                                                                    |                  | Shipper's Account Number   |                                                                                                                                                                                                                                                                                                 | Not Negotiable<br><h2 style="margin: 0;">Air Waybill</h2>                      |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 | Issued by                                                                      |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 | Copies 1, 2 and 3 of this Air Waybill are originals and have the same validity |                                           |
| Consignee's Name and Address                                                                                                                                  |                  | Consignee's Account Number |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Issuing Carrier's Agent Name and City                                                                                                                         |                  |                            |                                                                                                                                                                                                                                                                                                 | Accounting Information                                                         |                                           |
| Agent's IATA Code                                                                                                                                             |                  | Account No                 |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Airport of Departure (Audit of First Carrier) and Requested Routing                                                                                           |                  |                            |                                                                                                                                                                                                                                                                                                 | Reference Number                                                               |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 | Optional Shipping Information                                                  |                                           |
| To                                                                                                                                                            | By First Carrier | Routing and Destination    | to                                                                                                                                                                                                                                                                                              | by                                                                             | in                                        |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Airport of Destination                                                                                                                                        |                  |                            | Requested Flight/Date                                                                                                                                                                                                                                                                           |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Amount of Insurance                                                                                                                                           |                  |                            | INSURANCE - If carrier offers insurance, and such insurance is requested in accordance with the conditions thereof, indicate amount to be insured in figures in box marked "Amount of Insurance".                                                                                               |                                                                                |                                           |
| Handling Information                                                                                                                                          |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Ultimate destination |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                | Diversion contrary to U.S. law prohibited |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                | SGI                                       |
| No. of Pieces<br>PCP                                                                                                                                          | Gross Weight     | kg<br>lb                   | Rate Class<br>Commodity Item No                                                                                                                                                                                                                                                                 | Chargeable Weight                                                              | Rate<br>Charge                            |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Prepaid                                                                                                                                                       |                  |                            | Weight Charge                                                                                                                                                                                                                                                                                   |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Valuation Charge                                                                                                                                              |                  |                            | Collect                                                                                                                                                                                                                                                                                         |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Tax                                                                                                                                                           |                  |                            | Other Charges                                                                                                                                                                                                                                                                                   |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Total Other Charges Due Agent                                                                                                                                 |                  |                            | Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods, such part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations. |                                                                                |                                           |
| Total Other Charges Due Carrier                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Total Prepaid                                                                                                                                                 |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Total Collect                                                                                                                                                 |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Currency Conversion Rates                                                                                                                                     |                  |                            | CC Charges in Dest. Currency                                                                                                                                                                                                                                                                    |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| For Carrier Use only at Destination                                                                                                                           |                  |                            | Charges at Destination                                                                                                                                                                                                                                                                          |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Total Collect Charges                                                                                                                                         |                  |                            | Signature of Shipper or his Agent                                                                                                                                                                                                                                                               |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Executed on (date)                                                                                                                                            |                  |                            | at (place)                                                                                                                                                                                                                                                                                      |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |
| Signature of Issuing Carrier or its Agent                                                                                                                     |                  |                            | Signature of Issuing Carrier or its Agent                                                                                                                                                                                                                                                       |                                                                                |                                           |
|                                                                                                                                                               |                  |                            |                                                                                                                                                                                                                                                                                                 |                                                                                |                                           |

## **EXHIBIT 2**



CORPORATE HEADQUARTERS  
P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060  
TEL: (516) 921-4101  
TOLL FREE: (800) 243-5545  
FAX: (516) 921-4304

# INVOICE

| ORIGIN | DESTINATION |
|--------|-------------|
| CHN    | ORD         |

|                 |
|-----------------|
| 09/24/2014      |
| AIR BILL NUMBER |
| N770520         |

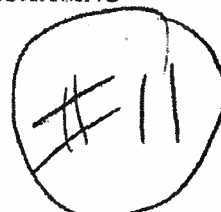
SHIPPER: ZIBO HONGYESHANQIN  
THE IND. ZONE  
FANGZHEN TOWN  
ZIBO  
CHINA

SHIPPER NUMBER

752547

SHIPPER REFERENCE NUMBER

RECEIVER: CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090



BILL TO

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

CUSTOMER NUMBER

718845

| PCS. | DESCRIPTION  | WT.    | DIM. WT. |
|------|--------------|--------|----------|
|      | VINYL GLOVES | 39.127 |          |
|      | UACU5502837  |        |          |

## MONTHLY BULLETIN

### Worldwide Services

- USA Expedited Freight Services
- Int'l Air and Ocean Freight Services
- Import and Export Documentation Services
- Assembly and Distribution Services
- Online Shipping
- Online Tracking and PODs

800-243-5545

Clearance Services Provided  
by Licensed Brokers. See Attached

## DESCRIPTION OF CHARGES

## CHARGES

OCEAN FREIGHT

5,385.00

IMPORT DUTY/TAX

228.68

VENDOR# 2 SBA

GL# \_\_\_\_\_

GL# 2010

POSTING DATE Sept

AMOUNT \$ 5613.68

ENTERED EJ

BOL# 998 OIN14090670ST

AIR BILL NUMBER  
N770520

MAKE CHECK  
PAYABLE TO:

**Service By Air, Inc.**

PAY THIS  
AMOUNT

USD

5,613.68

SEQ: 060

PLEASE DETACH AND SEND WITH PAYMENT

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

1 of 1

BILL TO:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

CUSTOMER NUMBER  
718845

SHIP DATE

09/24/2014

AIR WAY BILL NUMBER

N770520

INVOICE AMOUNT

USD 5,613.68

OK  
JS

TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE.

AMOUNT ENCLOSED

MAKE CHECK  
PAYABLE TO:

**SERVICE BY AIR, INC.**

REMIT TO:

P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060



10/08/2014

AIR BILL NUMBER

N770614

ORIGIN

DESTINATION

HKG

ORD

SHIPPER:

POLYWEL INTL TRADE CO  
ROOM 2107, 21/FCC WU BLDG  
308 HENNESSY RD  
WANCHAI  
HONG KONG

SHIPPER NUMBER

738819

SHIPPER REFERENCE NUMBER

RECEIVER:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

CTN# PCIU8214837

BILL TO:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

PCS.

DESCRIPTION

WT.

DIM. WT.

1

HDPE BAGS

42,910

CONT# PCIU 8214837

CUSTOMER NUMBER

718845

MONTHLY BULLETIN

**Worldwide Services**

- USA Expedited Freight Services
- Int'l Air and Ocean Freight Services
- Import and Export Documentation Services
- Assembly and Distribution Services
- Cold Chain Shipping
- Global Tracking and Pallets

800-243-5545

Clearance Services Provided  
by Licensed Brokers. See Attached

**DESCRIPTION OF CHARGES**

**CHARGES**

OCEAN FREIGHT  
IMPORT DUTY/TAX  
DETENTION — *Demurrage? 8 to 2 a/c*

4,585.00

1,010.45

1,855.00

BOL# 998 LAXAR071519

AIR BILL NUMBER

N770614

MAKE CHECK  
PAYABLE TO:

**Service By Air, Inc.**

PAY THIS  
AMOUNT

USD

7,450.45

SEQ: 061

PLEASE DETACH AND SEND WITH PAYMENT

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

1 of 1

BILL TO:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

SHIP DATE

10/08/2014

AIR WAY BILL NUMBER

N770614

INVOICE AMOUNT

USD

7,450.45

VENDOR#

GL#

GL#

POSTING DATE

AMOUNT \$

ENTERED

TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE.

AMOUNT ENCLOSED

MAKE CHECK  
PAYABLE TO:

**SERVICE BY AIR, INC.**

REMIT TO:

P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060



ORD 987  
 CORPORATE HEADQUARTERS  
 P.O. BOX 7777  
 OLD BETHPAGE, NY 11804-0060  
 TEL (516) 921-4101  
 (800) 243-5545  
 FAX (516) 921-4394

INVOICE

11/26/2014

ORIGINAL INVOICE  
 CHN

INVOICE NUMBER  
 N770856

#14

| <b>SHIPPER:</b><br>CHANGLE HUAXIN PLASTIC PR<br>INDUSTRIAL RD 18<br>BAOCHENG PIONEER PARK<br>SHANDONG<br>CHINA<br><br>SHIPPER REFERENCE NUMBER<br>753738 |                          | <b>RECEIVER:</b><br>HERCULES POLY INC<br>315 MAIN STREET<br>ECLECTIC AL 30004                                                                                                                                                                                                |      |       |             |     |      |       |        |   |                          |        |  |  |  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|-------|-------------|-----|------|-------|--------|---|--------------------------|--------|--|--|--|
| <b>BILL TO:</b><br>CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090                                                                 |                          | <table border="1"> <thead> <tr> <th>PCS.</th> <th>DESCRIPTION</th> <th>QTY</th> <th>UNIT</th> <th>PRICE</th> <th>AMOUNT</th> </tr> </thead> <tbody> <tr> <td>1</td> <td>HDPE BAGS<br/>TTNU4343813</td> <td>42.989</td> <td></td> <td></td> <td></td> </tr> </tbody> </table> |      | PCS.  | DESCRIPTION | QTY | UNIT | PRICE | AMOUNT | 1 | HDPE BAGS<br>TTNU4343813 | 42.989 |  |  |  |
| PCS.                                                                                                                                                     | DESCRIPTION              | QTY                                                                                                                                                                                                                                                                          | UNIT | PRICE | AMOUNT      |     |      |       |        |   |                          |        |  |  |  |
| 1                                                                                                                                                        | HDPE BAGS<br>TTNU4343813 | 42.989                                                                                                                                                                                                                                                                       |      |       |             |     |      |       |        |   |                          |        |  |  |  |
| <b>CUSTOMER NUMBER</b><br>718845                                                                                                                         |                          |                                                                                                                                                                                                                                                                              |      |       |             |     |      |       |        |   |                          |        |  |  |  |

| MONTHLY BULLETIN                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  | DESCRIPTION OF CHARGES                                                 |  | CHARGES                                                               |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|------------------------------------------------------------------------|--|-----------------------------------------------------------------------|
| <b>Worldwide Services</b><br><ul style="list-style-type: none"> <li>USA Expedited Freight Services</li> <li>Intl Air and Ocean Freight Services</li> <li>Import and Export Documentation Services</li> <li>Assembly and Distribution Services</li> <li>Online Shipping</li> <li>Online Tracking and POLS</li> <li>Information International Corporate Division</li> <li>800-243-5545</li> </ul> Clearance Services Provided<br>by Licensed Brokers. See Attached |  | OCEAN FREIGHT 2010<br>IMPORT DUTY/TAX 2010<br>CONTAINER DEMURRAGE 5087 |  | 5,050.00<br>1,518.00<br>2,206.26                                      |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  | BOL# 998 MSCUQQ856521                                                  |  |                                                                       |
| <b>AIR BILL NUMBER</b><br>N770856                                                                                                                                                                                                                                                                                                                                                                                                                                |  | <b>MAKE CHECK PAYABLE TO:</b>                                          |  | <b>SERVICE BY AIR</b><br>P.O. BOX 7777<br>OLD BETHPAGE, NY 11804-0060 |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  | <b>PAID THIS AMOUNT</b>                                                |  | USD 8,774.26                                                          |

SEQ: 015

1 of 1

PLEASE DETACH AND SEND WITH PAYMENT

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

|                                                                                          |  |                                                  |                                      |
|------------------------------------------------------------------------------------------|--|--------------------------------------------------|--------------------------------------|
| <b>BILL TO:</b><br>CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090 |  | <b>SHIP DATE</b><br>11/26/2014                   | <b>AIR WAYBILL NUMBER</b><br>N770856 |
| <b>VENDOR#</b> 2532                                                                      |  | <b>INVT. AMOUNT</b><br>USD 8,774.26              |                                      |
| <b>GL #</b> 2010-6568.01                                                                 |  |                                                  |                                      |
| <b>GL#</b> 5087-2206-25                                                                  |  |                                                  |                                      |
| <b>POSTING DATE</b> November                                                             |  |                                                  |                                      |
| <b>AMOUNT \$</b> 8774.26                                                                 |  | <b>AMOUNT ENCLOSED</b>                           |                                      |
| <b>CUSTOMER NUMBER</b><br>718845                                                         |  | <b>TERMS:</b> PAYMENT DUE 30 DAYS FROM SHIP DATE |                                      |
| <b>ENTERED</b> 1                                                                         |  |                                                  |                                      |

**REMIT TO:**  
 SERVICE BY AIR  
 P.O. BOX 7777  
 OLD BETHPAGE, NY 11804-0060

HXTND 140920



paid

PPER:

ZHANGJIAGANG EVERBRIGHT  
5F NEW HONGJI BLDG  
HUACHANG ROAD  
JIANGSU  
CHINA  
SHIPPER NUMBER

SHIPPER REFERENCE NUMBER

757942

RECEIVER:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

#20

BILL TO:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

| PCS. | DESCRIPTION | WT. | DIM. WT. |
|------|-------------|-----|----------|
|------|-------------|-----|----------|

|   |                             |        |  |
|---|-----------------------------|--------|--|
| 1 | VINYL GLOVES<br>PCIU8079300 | 41,887 |  |
|---|-----------------------------|--------|--|

RECEIVED  
DEC 08 2014

BY: .....

CUSTOMER NUMBER

718845

MONTHLY BULLETIN

DESCRIPTION OF CHARGES

CHARGES

**Worldwide Services**

- USA Expedited Freight Services
- Int'l Air and Ocean Freight Services
- Import and Export Documentation Services
- Assembly and Distribution Services
- Online Shipping
- Online Tracking and DDCs

800-243-5545

Clearance Services Provided  
by Licensed Brokers. See Attached

OCEAN FREIGHT  
IMPORT DUTY/TAX  
CONTAINER DEMURRAGE

2010  
2010  
5087

4,130.00  
173.75  
1,400.00

BOI # 998 PABVPILN06219751

AIR BILL NUMBER

N770888

MAKE CHECK  
PAYABLE TO:

**Service By Air, Inc.**

PAY THIS  
AMOUNT

USD

5,703.75

SEQ: 029

PLEASE DETACH AND SEND WITH PAYMENT

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

1 of 1

BILL TO:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

SHIP DATE

11/19/2014

AIR WAY BILL NUMBER

N770888

INVOICE AMOUNT

USD 5,703.75

VENDOR# LSBA

GL# \_\_\_\_\_

GL# 2010 5087

POSTING DATE NOV

TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE.

CUSTOMER NUMBER

718845

AMOUNT \$ 5703.75

ENTERED 4

AMOUNT ENCLOSED

MAKE CHECK  
PAYABLE TO:

**SERVICE BY AIR, INC.**

REMIT TO:

P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060

PO 5664

10/08/2014

AIR BILL NUMBER

N770553

ORIGIN

DESTINATION

CHN

ORD

SHIPPER: YANTAI FOODPACK  
IND. ZONE FUSHAN DIST  
YANTAI  
SHANDONG  
CHINA

SHIPPER NUMBER

753740

SHIPPER REFERENCE NUMBER

RECEIVER: CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

BILL TO:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

CUSTOMER NUMBER

718845

PCS. DESCRIPTION WT. DIM. WT.

HDPE BAGS 22.965  
MEDU2212151

MONTHLY BULLETIN

**Worldwide Services**

- USA Expedited Freight Services
- Inland Air and Ocean Freight Services
- Import and Export Documentation Services
- Assembly and Distribution Services
- Online Shipping
- Online Tracking and PODs

800-243-5545

Clearance Services Provided  
by Licensed Brokers See Attached

DESCRIPTION OF CHARGES

CHARGES

OCEAN FREIGHT  
IMPORT DUTY TAX  
DETENTION

6/LS087

G/L2010

Demurrage?

4,688.00  
896.28  
1,535.00

BOL - 998 WORSIH14090012

AIR BILL NUMBER  
N770553

MAKE CHECK  
PAYABLE TO:

**Service By Air, Inc.**

PAY THIS  
AMOUNT

USD 7,119.28

SEQ: 067

PLEASE DETACH AND SEND WITH PAYMENT

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

1 of 1

BILL TO:

CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

SHIP DATE

10/08/2014

AIR WAY BILL NUMBER

N770553

INVOICE AMOUNT

USD 7,119.28

CUSTOMER NUMBER  
718845

VERIFIED

DATE

TIME

POSTING DATE

AMOUNT \$

ENTERED

253A  
2010/5087  
Oct

7119.28

21

Yantai - FRINVI40808  
Pete's Del.

TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE.

AMOUNT ENCLOSED

MAKE CHECK  
PAYABLE TO:

**SERVICE BY AIR, INC.**

REMIT TO:

P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060

## **EXHIBIT 3**



ORD 994  
CORPORATE HEADQUARTERS  
P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060  
TEL: (516) 921-4101  
(800) 243-5545  
FAX: (516) 921-4304

INVOICE

10/13/2014

AIR BILL NUMBER

N771018

ORIGIN

DESTINATION

PVG

PHL

SHIPPER: YANTAI FOODPACK  
IND. ZONE FUSHAN DIST  
YANTAI  
SHANDONG  
CHINA

SHIPPER REFERENCE NUMBER

753740

RECEIVER: ULTA DIST CENTER  
96 KRINER ROAD  
CHAMBERSBURG PA 17202

BILL TO: CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

| PCS | DESCRIPTION         | WT     | DIM. WT. |
|-----|---------------------|--------|----------|
| 1   | BAGS<br>TCKU1771451 | 31,746 |          |

CUSTOMER NUMBER:

718845

MONTHLY BULLETIN

**Worldwide Services**

- USA Expedited Freight Services
  - Int'l Air and Ocean Freight Services
  - Import and Export Documentation Services
  - Assembly and Distribution Services
  - Online Shipping
  - Online Tracking and PODs
- Information International Corporate Division  
**800-243-5545**

Clearance Services Provided  
by Licensed Brokers. See Attached

DESCRIPTION OF CHARGES

CHARGES

|                      |          |
|----------------------|----------|
| AIR FREIGHT          | 5,400.00 |
| IMPORT DUTY/TAX      | 1,712.93 |
| CONTAINER STRIPPING  | 1,123.00 |
| APPOINTMENT DELIVERY | 950.00   |

MAWB# 998 IMP023274

AIR BILL NUMBER

N771018

MAKE CHECK  
PAYABLE TO:



SERVICE BY AIR  
P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060

PAY THIS  
AMOUNT

USD

9,185.93

SEQ: 024

1 of 1

PLEASE DETACH AND SEND WITH PAYMENT

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

BILL TO: CMI DISTRIBUTION - PACKAGING  
555 ALLENDALE DR  
WHEELING IL 60090

CUSTOMER NUMBER:

718845

SHIP DATE

10/13/2014

AIR WAY BILL NUMBER

N771018

INVOICE AMOUNT

USD

9,185.93

AMOUNT ENCLOSED

TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE

REMIT TO: SERVICE BY AIR  
P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060



## **EXHIBIT 4**

Shipper  
CMI DISTRIBUTION LLC  
555 ALLENDALE DRIVE WHEELING, IL 60090

Original

BL NO. INCH11410001

Nationality of Ocean Vessel

BILL OF LADING

LAS FREIGHT SYSTEM LTD.  
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.  
Tel: 886-2-27690055 Fax: 886-2-27639070  
台北市光復北路11巷44號10樓  
海運承攬運送業許可證字號：海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Consignee

ULTA DISTRIBUTION CENTER  
96 KRINER ROAD CHAMBERSBURG, PA 17202

Notify Address

ULTA DISTRIBUTION CENTER  
96 KRINER ROAD CHAMBERSBURG, PA 17202

Pre-carriage by  
MSC LUCIANA

Place of Receipt by Pre-carrier  
QINGDAO CHINA

Ocean Vessel  
MSC LUCIANA

FO442A

Port of Loading  
QINGDAO CHINA

Port of Discharge  
LONG BEACH, CA

Final destination (if goods to be transhipped at port of discharge)  
PHTI.ADRI.PHTA, PA

Freight payable at

Number of original B(s)/L  
THREE

Marks & Nos. / Container Nos.

Number and kind of packages: description of goods

Gross weight kgs

Measurement m<sup>3</sup>

N/M

5087  
CTNS

LDPE BAGS  
PO#0005398

14400.0000 KGS

29.0000 CBM

CY TO CY 1\*20GP

SAY TOTAL FIVE THOUSAND AND  
EIGHTY SEVEN CARTONS

Particulars Furnished by Merchants

CKU1771451/FEX6379601 20GP

X. "ORIGINAL" HBOL REQUIRED  
Ticsb.

FOB QINGDAO

SHIPPED ON BOARD  
20141019

FREIGHT COLLECT  
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

5,087CTNS

Freight and charges

Place of B(s)/L issue

Dated

QINGDAO CHINA 20141019

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD  
811 THORNDALE AVE BENSENVILLE, IL 60106, USA  
TEL: 630-616-1212 FAX: 630-616-1112

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

## **EXHIBIT 5**

DEPARTMENT OF HOMELAND SECURITY  
U.S. Customs and Border Protection  
**ENTRY SUMMARY**

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  |                                                                                                                                                                                                                            |  |                                                                                     |  |                                                                                                     |  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|-------------------------------------------------------------------------------------|--|-----------------------------------------------------------------------------------------------------|--|
| 8. Importing Carrier<br>MSC LUCIANA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | 9. Mode of Transport<br>11                                                                                                                                                                                                 |  | 10. Country of Origin<br>CN                                                         |  | 11. Import Date<br>11/04/2014                                                                       |  |
| 12. B/L or AWB No.<br>MSCUQQ922083                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  | 13. Manufacturer ID<br>CNYANFOOSHA                                                                                                                                                                                         |  | 14. Exporting Country<br>CN                                                         |  | 15. Export Date<br>10/19/2014                                                                       |  |
| 16. I.T. No.<br>V6002935411                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  | 17. I.T. Date<br>11/04/2014                                                                                                                                                                                                |  | 18. Missing Docs                                                                    |  | 19. Foreign Port of Lading<br>57035                                                                 |  |
| 20. U.S. Port of Unlading<br>2709                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  | 21. Location of Goods/G.O. No.<br>B326-CSX INTERMODAL                                                                                                                                                                      |  | 22. Consignee No.<br>SAME                                                           |  | 23. Importer No.<br>26-360824300                                                                    |  |
| 24. Reference No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  | 25. Ultimate Consignee Name and Address                                                                                                                                                                                    |  | 26. Importer of Record Name and Address<br>CMI DISTRIBUTION LLC<br>555 ALLENDALE DR |  |                                                                                                     |  |
| City                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | State IL                                                                                                                                                                                                                   |  | Zip                                                                                 |  | City WHEELING                                                                                       |  |
| State IL                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  | Zip 60090                                                                                                                                                                                                                  |  |                                                                                     |  |                                                                                                     |  |
| 27. Line No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  | 28. Description of Merchandise                                                                                                                                                                                             |  | 32. A. Entered Value<br>B. CHGS<br>C. Relationship                                  |  | 33. A. HTSUS Rate<br>B. AD/CVD Rate<br>C. IRC Rate<br>D. Visa No.                                   |  |
| 29. A. HTSUS No.<br>B. AD/CVD Case No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 30. A. Gross Weight<br>B. Manifest Qty.                                                                                                                                                                                    |  | 31. Net Quantity in<br>HTSUS Units                                                  |  | 34. Duty and I.R. Tax<br>Dollars Cents                                                              |  |
| 001                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | M QQ922083 H QD14100115<br><br>INVOICE 00001<br>PLASTIC BAGS<br>SACKS/BAGS PLASTIC ETHYLEN,OTH<br>3923.21.0095 14400 2544K<br><br>HARBOR MAINTENANCE FEE<br>MERCHANDISE PROCESSING FEE<br><br>TOTAL EV INV. 00001 49344.00 |  | NOT RELATED<br><br>49344<br>C5000                                                   |  | 5087 CTNS<br><br>3%<br>0.125%<br>0.3464%                                                            |  |
| Other Fee Summary for Block 39<br>MPF 499 170.93<br>HMF 501 61.68                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  | 35. Total Entered Value<br>\$ 49,344.00<br>Total Other Fees<br>\$ 232.61                                                                                                                                                   |  | CBP USE ONLY<br>A. LIQ CODE<br>REASON CODE                                          |  | TOTALS<br>B. Ascertained Duty<br>C. Ascertained Tax<br>D. Ascertained Other<br>E. Ascertained Total |  |
| 36. DECLARATION OF IMPORTER OF RECORD (OWNER OR PURCHASER) OR AUTHORIZED AGENT<br><br>I declare that I am the <input type="checkbox"/> Importer of record and that the actual owner, purchaser, or consignee for CBP purposes is as shown above, OR <input type="checkbox"/> owner or purchaser or agent thereof, I further declare that the merchandise <input checked="" type="checkbox"/> was obtained pursuant to a purchase or agreement to purchase and that the prices set forth in the invoices are true, OR <input type="checkbox"/> was not obtained pursuant to a purchase or agreement to purchase and the statements in the invoices as to value or price are true to the best of my knowledge and belief. I also declare that the statements in the documents herein filed fully disclose to the best of my knowledge and belief the true prices, values, quantities, rebates, drawbacks, fees, commissions, and royalties and are true and correct, and that all goods or services provided to the seller of the merchandise either free or at reduced cost are fully disclosed. I will immediately furnish to the appropriate CBP officer any information showing a different statement of facts. |  | 37. Duty<br>1480.32                                                                                                                                                                                                        |  | 38. Tax                                                                             |  | 39. Other<br>232.61                                                                                 |  |
| 40. Total<br>1712.93                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 41. DECLARANT NAME<br>SBA Consolidators, Inc.                                                                                                                                                                              |  | TITLE                                                                               |  | DATE<br>11/14/2014                                                                                  |  |
| 42. Broker/Filer Information (Name, address, phone number)<br>SBA Consolidators, Inc.<br>175-52 148th Road<br>Jamaica, NY 11434 7189953850                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |  | 43. Broker/Importer File No.<br>0143671                                                                                                                                                                                    |  |                                                                                     |  |                                                                                                     |  |

EDITRADE

RECORD

CBP Form 7501 (06/09)

# **EXHIBIT 6**



ORD 805  
CORPORATE HEADQUARTERS  
P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060  
TEL: (516) 921-4101  
(800) 243-5545  
FAX: (516) 921-4304

INVOICE

|                 |
|-----------------|
| 11/03/2014      |
| AIR BILL NUMBER |
| N771189         |

| ORIGIN | DESTINATION |
|--------|-------------|
| PVG    | PHX         |

| <b>SHIPPER:</b> YANTAI FOODPACK<br>IND. ZONE FUSHAN DIST<br>YANTAI<br>SHANDONG<br>CHINA<br><br><b>SHIPPER REFERENCE NUMBER</b><br>753740                                                                                                                                                                                                                                                                                                                                                |                     | <b>RECEIVER:</b> ULTA DIST<br>4570 W. LOWER BUCKEYE RD<br>PHOENIX AZ 85043                                                                                                                                                                                                                                                                |        |                        |             |             |          |                 |                     |                     |        |                     |          |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|------------------------|-------------|-------------|----------|-----------------|---------------------|---------------------|--------|---------------------|----------|
| <b>BILL TO:</b> CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090<br><br><b>CUSTOMER NUMBER:</b><br>718845                                                                                                                                                                                                                                                                                                                                                          |                     | <table border="1"> <thead> <tr> <th>PCS.</th><th>DESCRIPTION</th><th>WT</th><th>DIM WT</th></tr> </thead> <tbody> <tr> <td>4,600</td><td>BAGS<br/>TGHU1013740</td><td>30,643</td><td></td></tr> </tbody> </table>                                                                                                                         |        | PCS.                   | DESCRIPTION | WT          | DIM WT   | 4,600           | BAGS<br>TGHU1013740 | 30,643              |        |                     |          |
| PCS.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | DESCRIPTION         | WT                                                                                                                                                                                                                                                                                                                                        | DIM WT |                        |             |             |          |                 |                     |                     |        |                     |          |
| 4,600                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | BAGS<br>TGHU1013740 | 30,643                                                                                                                                                                                                                                                                                                                                    |        |                        |             |             |          |                 |                     |                     |        |                     |          |
| <b>MONTHLY BULLETIN</b><br><b>Worldwide Services</b><br><ul style="list-style-type: none"> <li>USA Expedited Freight Services</li> <li>Int'l Air and Ocean Freight Services</li> <li>Import and Export Documentation Services</li> <li>Assembly and Distribution Services</li> <li>Online Shipping</li> <li>Online Tracking and PODs</li> </ul> Information International Corporate Division<br><b>800-243-5545</b><br>Clearance Services Provided<br>by Licensed Brokers. See Attached |                     | <table border="1"> <thead> <tr> <th>DESCRIPTION OF CHARGES</th><th>CHARGES</th></tr> </thead> <tbody> <tr> <td>AIR FREIGHT</td><td>3,470.00</td></tr> <tr> <td>IMPORT DUTY/TAX</td><td>1,634.96</td></tr> <tr> <td>CONTAINER STRIPPING</td><td>720.00</td></tr> <tr> <td>CONTAINER DEMURRAGE</td><td>6,650.00</td></tr> </tbody> </table> |        | DESCRIPTION OF CHARGES | CHARGES     | AIR FREIGHT | 3,470.00 | IMPORT DUTY/TAX | 1,634.96            | CONTAINER STRIPPING | 720.00 | CONTAINER DEMURRAGE | 6,650.00 |
| DESCRIPTION OF CHARGES                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | CHARGES             |                                                                                                                                                                                                                                                                                                                                           |        |                        |             |             |          |                 |                     |                     |        |                     |          |
| AIR FREIGHT                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | 3,470.00            |                                                                                                                                                                                                                                                                                                                                           |        |                        |             |             |          |                 |                     |                     |        |                     |          |
| IMPORT DUTY/TAX                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 1,634.96            |                                                                                                                                                                                                                                                                                                                                           |        |                        |             |             |          |                 |                     |                     |        |                     |          |
| CONTAINER STRIPPING                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 720.00              |                                                                                                                                                                                                                                                                                                                                           |        |                        |             |             |          |                 |                     |                     |        |                     |          |
| CONTAINER DEMURRAGE                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 6,650.00            |                                                                                                                                                                                                                                                                                                                                           |        |                        |             |             |          |                 |                     |                     |        |                     |          |
| <b>AIR BILL NUMBER</b><br>N771189                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                     | <b>MAKE CHECK PAYABLE TO:</b> <b>SERVICE BY AIR</b><br>P.O. BOX 7777<br>OLD BETHPAGE, NY 11804-0060                                                                                                                                                                                                                                       |        |                        |             |             |          |                 |                     |                     |        |                     |          |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                     | <b>PAY THIS AMOUNT</b> <b>USD</b> 12,474.96                                                                                                                                                                                                                                                                                               |        |                        |             |             |          |                 |                     |                     |        |                     |          |

SEQ: 044

1 of 1

PLEASE DETACH AND SEND WITH PAYMENT:

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

|                                                                                                                                |                       |                            |
|--------------------------------------------------------------------------------------------------------------------------------|-----------------------|----------------------------|
| <b>BILL TO:</b> CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090<br><br><b>CUSTOMER NUMBER:</b><br>718845 | <b>SHIP DATE</b>      | <b>AIR WAY BILL NUMBER</b> |
|                                                                                                                                | 11/03/2014            | N771189                    |
|                                                                                                                                | <b>INVOICE AMOUNT</b> |                            |
|                                                                                                                                | USD                   | 12,474.96                  |

**AMOUNT ENCLOSED**

**TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE**

**REMIT TO:** SERVICE BY AIR  
P.O. BOX 7777  
OLD BETHPAGE, NY 11804-0060





ORD 987  
 CORPORATE HEADQUARTERS  
 P.O. BOX 7777  
 OLD BETHPAGE, NY 11804-0060  
 TEL: (516) 921-4101  
 (800) 243-5545  
 FAX: (516) 921-4304

INVOICE

09/29/2014

AIR BILL NUMBER  
 N770915

| ORIGIN | DESTINATION |
|--------|-------------|
| PVG    | PHX         |

| SHIPPER: YANTAI FOODPACK<br>IND. ZONE FUSHAN DIST<br>YANTAI<br>SHANDONG<br>CHINA<br><br>SHIPPER REFERENCE NUMBER<br>753740 | RECEIVER: ULTA DIST<br>4570 W. LOWER BUCKEYE RD<br>PHOENIX AZ 85043                                                                                                                                              |        |             |     |          |   |                     |        |  |
|----------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|-------------|-----|----------|---|---------------------|--------|--|
| BILL TO: CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090                                             | <table border="1"> <thead> <tr> <th>PCS.</th><th>DESCRIPTION</th><th>WT.</th><th>DIM. WT.</th></tr> </thead> <tbody> <tr> <td>1</td><td>BAGS<br/>MATU2315044</td><td>41.454</td><td></td></tr> </tbody> </table> | PCS.   | DESCRIPTION | WT. | DIM. WT. | 1 | BAGS<br>MATU2315044 | 41.454 |  |
| PCS.                                                                                                                       | DESCRIPTION                                                                                                                                                                                                      | WT.    | DIM. WT.    |     |          |   |                     |        |  |
| 1                                                                                                                          | BAGS<br>MATU2315044                                                                                                                                                                                              | 41.454 |             |     |          |   |                     |        |  |
| CUSTOMER NUMBER:<br>718845                                                                                                 |                                                                                                                                                                                                                  |        |             |     |          |   |                     |        |  |

| MONTHLY BULLETIN                                                                                                                                                                                                                                                                                                                                                                          | DESCRIPTION OF CHARGES          | CHARGES                                                        |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|----------------------------------------------------------------|
| <b>Worldwide Services</b><br>• SBA Expedited Freight Services<br>• Import and Export Customs Services<br>• Import and Export Documentation Services<br>• Assembly and Distribution Services<br>• Online Shipping<br>• Online Tracking and PODs<br>• Information Management & Operational Division<br>800-243-5545<br><br>Clearance Services Provided<br>by Licensed Brokers. See Attached | AIR FREIGHT <i>2010</i>         | 4,050.00                                                       |
|                                                                                                                                                                                                                                                                                                                                                                                           | IMPORT DUTY/TAX <i>2010</i>     | 2,171.81                                                       |
|                                                                                                                                                                                                                                                                                                                                                                                           | CARTAGE P/U <i>2010</i>         | 2,850.00                                                       |
|                                                                                                                                                                                                                                                                                                                                                                                           | SORT & SEGREGATE <i>2010</i>    | 827.25                                                         |
|                                                                                                                                                                                                                                                                                                                                                                                           | CONTAINER STRIPPING <i>2010</i> | 460.00                                                         |
|                                                                                                                                                                                                                                                                                                                                                                                           | CONTAINER DEMURRAGE <i>5087</i> | 3,740.00                                                       |
| MAWB# 998 MATS2949375000                                                                                                                                                                                                                                                                                                                                                                  |                                 |                                                                |
| AIR BILL NUMBER<br>N770915                                                                                                                                                                                                                                                                                                                                                                | MAKE CHECK PAYABLE TO:          | SERVICE BY AIR<br>P.O. BOX 7777<br>OLD BETHPAGE, NY 11804-0060 |
| PAY THIS AMOUNT > USD 14,099.06                                                                                                                                                                                                                                                                                                                                                           |                                 |                                                                |

SEQ: 016

1 of 1

PLEASE DETACH AND SEND WITH PAYMENT

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

|                                                                                                                                              |                                 |                                |
|----------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------|--------------------------------|
| BILL TO: CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090                                                               | SHIP DATE<br>09/29/2014         | AIR WAY BILL NUMBER<br>N770915 |
| VENDOR# <i>2 SBA</i><br>GL # <i>Measured Down</i><br>GL# <i>Measured Down</i><br>POSTING DATE <i>14,099.06</i><br>AMOUNT \$ <i>14,099.06</i> | INVOICE AMOUNT<br>USD 14,099.06 |                                |
| CUSTOMER NUMBER:<br>718845                                                                                                                   | AMOUNT ENCLOSED                 |                                |
| TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE:                                                                                                   |                                 |                                |

REMIT TO: SERVICE BY AIR  
 P.O. BOX 7777  
 OLD BETHPAGE, NY 11804-0060





ORD 989  
 CORPORATE HEADQUARTERS  
 P.O. BOX 7777  
 OLD BETHPAGE, NY 11804-0060  
 TEL: (516) 921-4101  
 (800) 243-5545  
 FAX: (516) 921-4304

INVOICE

| ORIGIN | DESTINATION |
|--------|-------------|
| PVG    | ORD         |

|                 |
|-----------------|
| 11/28/2014      |
| AIR BILL NUMBER |
| N771369         |

|                                                                                                                                                    |                                                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------|
| SHIPPER: WEIFANG CHENXI PLASTICS P<br>LIJIAHE VILLAGE QIAGUAN<br>TOWN CHANGLE<br>262408 SHADONG<br>CHINA<br><br>SHIPPER REFERENCE NUMBER<br>752548 | RECEIVER: CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090 |
|----------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------|

| BILL TO:                                                              | PCS. | DESCRIPTION | WT. | DIM WT. |
|-----------------------------------------------------------------------|------|-------------|-----|---------|
| CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090 | 10   |             | 551 |         |
| CUSTOMER NUMBER: 718845                                               |      |             |     |         |

| MONTHLY BULLETIN                                                                                                                                                                                                                                                                                                                                                                                                                                             | DESCRIPTION OF CHARGES                                                                   | CHARGES           |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|-------------------|
| <b>Worldwide Services</b><br><ul style="list-style-type: none"> <li>USA Expedited Freight Services</li> <li>Int'l Air and Ocean Freight Services</li> <li>Import and Export Documentation Services</li> <li>Assembly and Distribution Services</li> <li>Online Shipping</li> <li>Online Tracking and PODs</li> </ul> Information International Corporate Division<br><b>800-243-5545</b><br>Clearance Services Provided<br>by Licensed Brokers. See Attached | AIR FREIGHT<br>IMPORT DUTY/TAX<br><br><br><br><br><br><br><br><br><br>MAWB# 205 30572861 | 1,995.00<br>20.69 |

|                            |                                                                                                            |                                                                |                                                                                                       |              |
|----------------------------|------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|--------------|
| AIR BILL NUMBER<br>N771369 | MAKE CHECK PAYABLE TO:  | SERVICE BY AIR<br>P.O. BOX 7777<br>OLD BETHPAGE, NY 11804-0060 | PAY THIS AMOUNT  | USD 2,015.69 |
|----------------------------|------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|--------------|

SEQ: 024

1 of 1

PLEASE DETACH AND SEND WITH PAYMENT:

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

|                                                                                                               |                |                     |
|---------------------------------------------------------------------------------------------------------------|----------------|---------------------|
| BILL TO: CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090<br><br>CUSTOMER NUMBER: 718845 | SHIP DATE      | AIR WAY BILL NUMBER |
|                                                                                                               | 11/28/2014     | N771369             |
|                                                                                                               | INVOICE AMOUNT |                     |
|                                                                                                               | USD            | 2,015.69            |

AMOUNT ENCLOSED

TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE

REMIT TO: SERVICE BY AIR  
 P.O. BOX 7777  
 OLD BETHPAGE, NY 11804-0060



# **EXHIBIT 7**

---

**From:** Ed Zasada <zasadae@sbaglobal.com>  
**Sent:** Tuesday, April 07, 2015 12:31 PM  
**To:** Diana Alvarado  
**Cc:** Bryan Tincher; Abigail Cuevas  
**Subject:** RE: Invoices Requested!

Air freight is incorrect, this invoice is for demurrage.

Ed Zasada  
Regional Manager (ORD)  
SBA Global Logistic Services

811 Thorndale Ave  
Bensenville, IL 60106

Tel: 630-616-1212  
Fax: 630-616-1112  
Toll Free: 800-323-9206

[zasadae@sbaglobal.com](mailto:zasadae@sbaglobal.com)



---

**From:** Diana Alvarado [mailto:[dianaA@cmipackaging.com](mailto:dianaA@cmipackaging.com)]  
**Sent:** Tuesday, April 07, 2015 11:03 AM  
**To:** Ed Zasada  
**Cc:** Bryan Tincher; Ella Segal  
**Subject:** FW: Invoices Requested!

Ed,

On the invoice # B771383 under description you have AIR FREIGHT , this shouldn't be air freight if this is demurrage, which we think it is.

Please confirm to us, if it was just a mistake and what this cost corresponded to.

Thanks.

**From:** Ed Zasada [mailto:[zasadae@sbaglobal.com](mailto:zasadae@sbaglobal.com)]  
**Sent:** Monday, April 06, 2015 1:20 PM  
**To:** Diana Alvarado  
**Cc:** Michael Miller; Bryan Tincher  
**Subject:** Invoices Requested!

Invoices attached

---

-----Original Message-----

**From:** no-reply [mailto:[no-reply@sbaglobal.com](mailto:no-reply@sbaglobal.com)]  
**Sent:** Monday, April 06, 2015 1:15 PM  
**To:** [zasadae@servicebyair.com](mailto:zasadae@servicebyair.com)  
**Subject:** Invoices Requested!

Requested Invoices Attached.

| Hawb    | Customer Acct | Customer Name                |
|---------|---------------|------------------------------|
| N771570 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771571 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771383 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771645 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771679 | 718845        | CMI DISTRIBUTION - PACKAGING |
| B771383 | 718845        | CMI DISTRIBUTION - PACKAGING |
| B771105 | 718845        | CMI DISTRIBUTION - PACKAGING |
| B771645 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771678 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771716 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771724 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771769 | 718845        | CMI DISTRIBUTION - PACKAGING |
| N771807 | 718845        | CMI DISTRIBUTION - PACKAGING |

Request Completed by [info@sbaglobal.com](mailto:info@sbaglobal.com)

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available at [www.sbaglobal.com](http://www.sbaglobal.com).

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# **EXHIBIT 8**

**From:** Bryan Tincher [mailto:[tincherb@sbaglobal.com](mailto:tincherb@sbaglobal.com)]  
**Sent:** Thursday, March 12, 2015 1:10 PM  
**To:** Maria Teresa Vega; Bonnie Crowley; Jay Jalowiecki; Michael Miller; Ed Zasada  
**Subject:** old cont's

Can you let me know when TCNU 511084 will be released. It's been in demurrage since November and the SS Line is giving me difficult time.

They want the empty back.

Also, please let me know what is planned for the refused container for Hercules, cont# KKFU1508648. They are also asking me every day when it will be returned. It has been here since December.

Sincerely  
Bryan J. Tincher  
Import/Export Manager



SBA Global-ORD  
811 Thorndale Ave  
Bensenville, IL 60106  
630-616-1212  
Fax 630-616-1112  
cell 847-212-3051

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## **EXHIBIT 9**

**From:** Bryan Tincher [mailto:[tincherb@sbaglobal.com](mailto:tincherb@sbaglobal.com)]  
**Sent:** Tuesday, July 07, 2015 11:33 AM  
**To:** Maria Teresa Vega  
**Cc:** Diana Alvarado; Ed Zasada  
**Subject:** RE: CMI Invoices

We paid demurrage up to June 18 and this is what you are billed for.  
From this date to 9 July is 21 days at \$300 per day x 3 containers  
The amount I am billing today \$18,900.00. So we need \$86,550.00 paid before anything is delivered. This is \$65,650 you owed for past invoices and \$18,900 we outlaid this week for demurrage the dates above.  
This cannot be negotiated. We already paid the SS Line.  
If we can resolve by Thursday, there will be additional cost because I will have to unload the containers and warehouse the product at my terminal in Las Vegas. The SS Line will not accept any more delays. They want their containers back. I have been fighting them for weeks and it has now come to an ultimatum. They will take possession of the containers and the contents and this will become a major problem.

Sincerely  
Bryan J. Tincher  
Import/Export Manager



SBA Global-ORD  
811 Thorndale Ave  
Bensenville, IL 60106  
630-616-1212  
Fax 630-616-1112  
cell 847-212-3051

**From:** Maria Teresa Vega [mailto:[mariav@cmipackaging.com](mailto:mariav@cmipackaging.com)]  
**Sent:** Tuesday, July 07, 2015 11:27 AM  
**To:** Bryan Tincher  
**Cc:** Diana Alvarado; Ed Zasada  
**Subject:** RE: CMI Invoices

OK were you able to talk to ED about his last email and the additional 18,900 amount that you say is added to his amount, we still don't understand how that could be if there were only 12 days from the date of his last email to me, how is that possible.

# **EXHIBIT 10**

---

**From:** Ed Zasada <zasadae@sbaglobal.com>  
**Sent:** Tuesday, June 23, 2015 5:00 PM  
**To:** Maria Teresa Vega  
**Cc:** Bryan Tincher  
**Subject:** FW: CMI Invoices

Good afternoon Maria,

Bryan told me you're hoping to return the 2 highlighted containers below to China, when you can let us know if the vendor will allow that and who will pay for the return. I understand he also advised you SBA had to pay the demurrage to date on all 3 containers because the steamship line was going to confiscate and put a lien on them. Before anything can be done with these containers CMI will need to pay the demurrage to date on all 3 containers and the demurrage on the 2 containers delivered last week. Please advise your payment schedule.

Thanks,

Ed

B852231 demurrage ORD = \$12600.00 \*delivered last week

B851991 demurrage ORD = \$18000.00 \*delivered last week

|             |         |                                             |
|-------------|---------|---------------------------------------------|
| KKFU1167644 | B852232 | demurrage LAS = \$12250.00                  |
| KKFU1363499 | B852230 | demurrage LAS = \$12400.00 *possible return |
| KKFU1614383 | B852230 | demurrage LAS = \$12400.00 *possible return |

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available at [www.sbaglobal.com](http://www.sbaglobal.com).

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# **EXHIBIT 11**

---

**From:** Amanda Bruno <brunoa@sbaglobal.com>  
**Sent:** Tuesday, June 03, 2014 4:42 PM  
**To:** Accounts Payable  
**Subject:** Service By Air Invoice for HAWB N0612484 06/03/2014  
**Attachments:** SBA INVOICE FOR HAWB N0612484 06-03-2014.pdf

Good afternoon

Pls see attached airbill open for payment.

Make it a great day!  
Amanda Bruno  
Accounts Receivable  
SBA Global Logistics  
PO Box 7777  
Old Bethpage NY 11804  
ph- 516-921-4101 x243  
fax- 516-921-6150  
email: [brunoa@sbaglobal.com](mailto:brunoa@sbaglobal.com)

To view Service By Air Terms and Conditions:  
<http://www.servicebyair.com/terms-and-conditions/>

The entire Service By Air Team would like to thank you for your business and continued support of our Worldwide Transportation Partnership.

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ORD 978  
 CORPORATE HEADQUARTERS  
 P.O. BOX 7777  
 OLD BETHPAGE, NY 11804-0060  
 TEL: (516) 921-4101  
 (800) 243-5545  
 FAX: (516) 921-4304

INVOICE

| ORIGIN | DESTINATION |
|--------|-------------|
| HKG    | ORD         |

|                 |
|-----------------|
| 04/30/2014      |
| AIR BILL NUMBER |
| N612484         |

|                                                                                                                                                  |                                                                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------|
| SHIPPER: POLYWEL INTL TRADE CO<br>ROOM 2107, 21/FCC WU BLDG<br>308 HENNESSY RD<br>WANCHAI<br>HONG KONG<br><br>SHIPPER REFERENCE NUMBER<br>738819 | RECEIVER: CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090 |
|--------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------|

| BILL TO: CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090<br><br>CUSTOMER NUMBER:<br>718845 | <table border="1"> <thead> <tr> <th>PCS</th><th>DESCRIPTION</th><th>WT</th><th>DIM. WT</th></tr> </thead> <tbody> <tr> <td>1</td><td>HDPE BAGS</td><td>43,747</td><td></td></tr> </tbody> </table> | PCS    | DESCRIPTION | WT | DIM. WT | 1 | HDPE BAGS | 43,747 |  |
|------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|-------------|----|---------|---|-----------|--------|--|
| PCS                                                                                                              | DESCRIPTION                                                                                                                                                                                        | WT     | DIM. WT     |    |         |   |           |        |  |
| 1                                                                                                                | HDPE BAGS                                                                                                                                                                                          | 43,747 |             |    |         |   |           |        |  |

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                      |                                 |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------|---------------------------------|
| MONTHLY BULLETIN<br><b>Worldwide Services</b><br><ul style="list-style-type: none"> <li>USA Expedited Freight Services</li> <li>Int'l Air and Ocean Freight Services</li> <li>Import and Export Documentation Services</li> <li>Assembly and Distribution Services</li> <li>Online Shipping</li> <li>Online Tracking and PODs</li> </ul> Information International Corporate Division<br>800-243-5545<br>Clearance Services Provided<br>by Licensed Brokers. See Attached | DESCRIPTION OF CHARGES<br>OCEAN FREIGHT<br>IMPORT DUTY/TAX<br><br>BOL# 998 SH1403517 | CHARGES<br>4,585.00<br>1,099.63 |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------|---------------------------------|

|                            |                                                                                                            |                                                                |                                                                                                       |              |
|----------------------------|------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|--------------|
| AIR BILL NUMBER<br>N612484 | MAKE CHECK PAYABLE TO:  | SERVICE BY AIR<br>P.O. BOX 7777<br>OLD BETHPAGE, NY 11804-0060 | PAY THIS AMOUNT  | USD 5,684.63 |
|----------------------------|------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|--------------|

SEQ: 044

1 of 1

PLEASE DETACH AND SEND WITH PAYMENT:

**MAKE CHECK PAYABLE TO: SERVICE BY AIR, INC.**

|                                                                                                                 |                |                     |
|-----------------------------------------------------------------------------------------------------------------|----------------|---------------------|
| BILL TO: CMI DISTRIBUTION - PACKAGING<br>555 ALLENDALE DR<br>WHEELING IL 60090<br><br>CUSTOMER NUMBER<br>718845 | SHIP DATE      | AIR WAY BILL NUMBER |
|                                                                                                                 | 04/30/2014     | N612484             |
|                                                                                                                 | INVOICE AMOUNT |                     |
|                                                                                                                 | USD            | 5,684.63            |

AMOUNT ENCLOSED

TERMS: PAYMENT DUE 30 DAYS FROM SHIP DATE:

REMIT TO: SERVICE BY AIR  
 P.O. BOX 7777  
 OLD BETHPAGE, NY 11804-0060



## **EXHIBIT 12**

Shipper

CM1 DISTRIBUTION LLC  
555 ALLENDALE DRIVE WHEELING, IL 60090

Consignee

DYNAMEX  
6585 ESCONDIDO STREET  
LAS VEGAS NV 89119  
TEL: 702-914-1919

Notify Address

DYNAMEX  
6585 ESCONDIDO STREET  
LAS VEGAS NV 89119  
TEL: 702-914-1919

Pre-carriage by

SONGYUNHE

\*Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

SONGYUNHE

0583E

Port of Loading

QINGDAO CHINA

Port of Discharge

LONG BEACH, CA

\*Final destination (if goods to be transhipped at port of discharge)

LAS VEGAS, NV

Freight payable at

Number of original B(s)/L

THREE

Marks &amp; Nos. / Container Nos.

N/M

Number and kind of packages: description of goods

3081

PLASTIC BAGS  
(BRADY CAN LINERS)

CTNS

CY TO DOOR 1\*40GP

SAY TOTAL THREE THOUSAND AND  
EIGHTY ONE CARTONS

Gross weight kgs

19400.0000

KGS

40.0000

CBM

Particulars Furnished by Merchants

KKFU1363499/CBF34566 40GP

FOB QINGDAO

SHIPPED ON BOARD  
20150411

FREIGHT COLLECT  
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

3,081 CTNS

Freight and charges

Place of B(s)/L Issue

Dated

QINGDAO CHINA 20150411

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD  
811 THORNDALE AVE  
BENSENVILLE, IL 60106, USA  
TEL: 630-616-1212  
FAX: 630-616-1112

AS CARRIER

\*Applicable only when document used as combined Transport Bill of Lading

Original

BILL OF LADING

B/L No. QINCH11504004B

Nationality of Ocean Vessel

LAS FREIGHT SYSTEM LTD.  
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.  
Tel: 886-2-27690055 Fax: 886-2-27639070  
台北市光復北路11巷44號10樓  
海運承攬運送業許可證字號: 海撰(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Shipper

CM1 DISTRIBUTION LLC  
555 ALLENDALE DRIVE WHEELING, IL 60090

Original

BILL OF LADING

D/L No.

QINCHI1504004A

Nationality of Ocean Vessel

Consignee

DYNAMEX  
6585 ESCONDIDO STREET  
LAS VEGAS NV 89119  
TEL: 702-914-1919

Notify Address

DYNAMEX  
6585 ESCONDIDO STREET  
LAS VEGAS NV 89119  
TEL: 702-914-1919

Pre-carriage by  
SONGYUNHE

\*Place of Receipt by Pre-carrier  
QINGDAO CHINA

Ocean Vessel  
SONGYUNHE

0583E

Port of Loading  
QINGDAO CHINA

Port of Discharge  
LONG BEACH, CA

\*Final destination (if goods to be transhipped at port of discharge)

LAS VEGAS, NV

Freight payable at

Number of original B(s)/L

THREE

| Marks & Nos. / Container Nos.        | Number and kind of packages; description of goods                                                                                                                                                          | Gross weight kgs      | Measurement m <sup>3</sup>                                                                                |
|--------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------|-----------------------------------------------------------------------------------------------------------|
| N/M<br><br>KKFU1614383/CBF17041 40GP | 1948<br>CTNS<br><br>PLASTIC BAGS<br>(BRADY CAN LINERS)<br><br>CY TO DOOR 1*40GP<br><br>SAY TOTAL ONE THOUSAND NINE<br>HUNDRED AND FORTY EIGHT CARTONS<br><br><i>✗ "ORIGINAL" REQUIRED.</i><br><i>Tics!</i> | 19500.0000<br>40.0000 | KGS<br>CBM<br><br>FOB QINGDAO<br><div data-bbox="1153 1155 1412 1302">SHIPPED ON BOARD<br/>20150411</div> |
| TOTAL PACKAGE(S) (IN WORDS)          | 1, 948 CTNS                                                                                                                                                                                                |                       |                                                                                                           |

Freight and charges

Place of B(s)/L Issue

Dated

QINGDAO CHINA 20150411

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD  
811 THORNDALE AVE  
BENSENVILLE, IL 60106, USA  
TEL: 630-616-1212  
FAX: 630-616-1112

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

\*Applicable only when document used as combined Transport Bill of Lading

Shipper

WEIFANG SUNSHINE PLASTIC CO., LTD.  
ANQIU TOWN, WEIFANG CITY, SHANDONG, CHINA

Original

## BILL OF LADING

B/L No.

QINCHI1502006

Nationality of Ocean Vessel

Consignee

CMI DISTRIBUTION LLC  
555 ALLENDALE DRIVE WHEELING, IL 60090, USA

Notify Address

SAME AS CONSIGNEE

LAS FREIGHT SYSTEM LTD.  
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.  
Tel: 886-2-27690055 Fax: 886-2-27639070  
台北市光復北路11巷44號10樓  
海運承攬運送業許可證字號：海農(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Pre-carriage by

\*Place of Receipt by Pre-carrier

MSC PINA

QINGDAO CHINA

Ocean Vessel

Port of Loading

MSC PINA

QINGDAO CHINA

Port of Discharge

FOBOEN

Final destination (if goods to be transhipped at port of discharge)

Freight payable at

Number of original B(s)/L

LONG BEACH, CA

CHICAGO, IL

THREE

Marks &amp; Nos. / Container Nos.

Number and kind of packages: description of goods

Gross weight kgs

Measurement m<sup>3</sup>

N/M

3910

PLASTIC BAGS  
(COLONIAL CAN LINERS)

19450.0000

KGS

CTNS

45.0000

CBM

CY TO CY 1\*40GP

SAY TOTAL THREE THOUSAND NINE  
HUNDRED AND TEN CARTONS

"ORIGINAL" HBL REQUIRED

FOB QINGDAO

MSCU4271080/FEX7130650 40GP

SHIPPED ON BOARD  
20150208

FREIGHT COLLECT  
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

3,910 CTNS

Freight and charges

Place of B(s)/L Issue

Dated

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

QINGDAO CHINA 20150208

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD  
811 THORNDALE AVE  
BENSENVILLE, IL 60106, USA  
TEL: 630-616-1212  
FAX: 630-616-1112

AS CARRIER

\*Applicable only when document used as combined Transport Bill of Lading

Shipper

WEIFANG CHENXI PLASTIC PRODUCTS CO., LTD.  
WEST OF LIJIAHE VILLAGE QIAOGUAN TOWN CHANGLE COUNTY  
SHANDONG CHINA

Original

Bl. No. QLNCHI1501007

Nationality of Ocean Vessel

Consignee

CMI DISTRIBUTION LLC  
555 ALLENDALE DRIVE WHEELING, IL 60090

LAS FREIGHT SYSTEM LTD.

台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.

Tel: 886-2-27690055 Fax: 886-2-27639070

台北市光復北路11巷44號10樓

海運承攬運送業許可證字號：海撰（基）字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Notify Address

SAME AS CONSIGNEE

Pre-carriage by

MAERSK SINGAPORE

\*Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

MAERSK SINGAPORE

1512

Port of Loading

QINGDAO CHINA

Port of Discharge

LONG BEACH, CA

\*Final destination (if goods to be transhipped at port of discharge)

CHICAGO, IL

Freight payable at

Number of original B(s)/L

THREE

Marks &amp; Nos. / Container Nos.

N/M

Number and kind of packages: description of goods

4017  
CTNSPLASTIC BAGS  
(COLONIAL BAGS)

CY TO CY 1\*40GP

SAY TOTAL FOUR THOUSAND AND  
SEVENTEEN CARTONS

Gross weight kgs

19500.0000

KGS

28.0000

CBM

Measurement m<sup>3</sup>

TRIUE5347886/FEX7120807 40GP

X "ORIGINAL" HBOL REQUIRED.

Tics!

FOB QINGDAO

SHIPPED ON BOARD  
20150117FREIGHT COLLECT  
SHIPPER'S LOAD, COUNT AND SEAL.

TOTAL PACKAGE(S) (IN WORDS)

4, 017 CTNS

Freight and charges

Place of B(s)/L issue

Dated

QINGDAO CHINA 20150117

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD  
811 THORNDALE AVE  
PENSACOLA FL 32506, USA  
TEL: 904-616-1112  
FAX: 904-616-1112

AS CARRIER

\*Applicable only when document used as combined Transport Bill of Lading

\* Appears only when document used as a Through Bill of Lading

Shipper

GM DISTRIBUTION, LLC  
555 ALLENDALE DR  
WHEELING IL 60090  
PHONE: +1 847 9477400 FAX: +1 847 9477418

Consignee

HERCULES POLY INC  
701 INDUSTRIAL DR PERRYVILLE MO 63775

Notify Address

SAME AS CONSIGNEE

Pre-carriage by

CMA CGM MEDEA

Place of Receipt by Pre-carrier

QINGDAO CHINA

Ocean Vessel

Port of Loading

CMA CGM MEDEA

QINGDAO CHINA

Port of Discharge

DONG 720

LONG BEACH, CA

BIRMINGHAM, AL

Place of destination of goods to be transhipped at port of discharge

Freight payable at

Number of original B/L

THREE

Marks &amp; Nos. / Container Nos.

N/M

Number and kind of packages: description of goods

2440

HDPE BAGS

CTNS

PO#005088

PO#003848

CY TO CY 1\*40GP

SAY TOTAL TWO THOUSAND FOUR  
HUNDRED AND FORTY CARTONS

Gross weight kgs

Measurement m³

9500.0000 KGS

50.0000 CBM

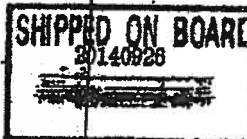
Particulars Furnished by Merchant

X- "ORIGINAL"  
REQUIRED

HBOL  
7ics!

TINU4343813/FEK6367871 40GP

FOB QINGDAO



FREIGHT COLLECT  
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

2, 440CTNS

Freight and charges

Place of B/L issue

Date

QINGDAO CHINA 20140926

FOR DELIVERY OF GOODS PLEASE APPLY TO:

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD  
811 THORNDALE AVE  
BENSENVILLE, IL 60106, USA  
TEL: 630-818-1212 FAX: 630-818-1112

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

AS CARRIER

\*Applicable only when document used as combined Transport Bill of Lading

Original

BILL OF LADING

B/L No.

QINCH11409006

Nationality of Ocean Vessel

LAS FREIGHT SYSTEM LTD.  
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.

Tel: 886-2-27690055 Fax: 886-2-27639070

台北市光復北路11巷44號10樓

海運承運運送業許可證字號: 海運(基)字第555號

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agent has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

Shipper

POLYWEL INTERNATIONAL TRADE CO., LIMITED  
ROOM 2107, 21/F, C C WU BUILDING, 308 HENNESSY RD  
WANCHAI HK

Original

B/L No. SHACHI1501006  
Nationality of Ocean Vessel

## BILL OF LADING

LAS FREIGHT SYSTEM LTD.  
台遠運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.  
Tel: 886-2-27690055 Fax: 886-2-27639070  
台北市光復北路11巷44號10樓  
海運承攬運送業許可證字號：海運(基)字第555號

Consignee

CMJ DISTRIBUTION LLC  
555 ALLENDALE DRIVE WHEELING, IL 60090

Notify Address

SAME AS CONSIGNEE

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the Insurance upon their goods.

Pre-carriage by

Place of Receipt by Pre-carrier

NORTHERN JUVENILE

SHANGHAI CHINA

Ocean Vessel

Port of Loading

NORTHERN JUVENILE

00012 SHANGHAI CHINA

Port of Discharge

Final destination (if goods to be transhipped at port of discharge)

Freight payable at

Number of original B(s)/L

VANCOUVER, CANADA

CHICAGO, USA

THREE

Marks &amp; Nos. / Container Nos.

Number and kind of packages: description of goods

Gross weight kgs

Measurement m<sup>3</sup>

N/M

3260  
CTNSHDPE BAGS  
PO#OS205

CY TO CY 1\*40HQ

SAY TOTAL THREE THOUSAND TWO  
HUNDRED AND SIXTY CARTONS19560.0000 KGS  
41.0000 CBM

GLDU9071069/W491802 40HQ

FOB SHANGHAI

SHIPPED ON BOARD  
20150125

FREIGHT COLLECT  
SHIPPER'S LOAD, COUNT AND SEAL

TOTAL PACKAGE(S) (IN WORDS)

3,260CTNS

Freight and charges

Place of B(s)/L issue

Date

FOR DELIVERY OF GOODS PLEASE APPLY TO:

Signed for the Carrier

LAS FREIGHT SYSTEM LTD.

SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD  
811 THORNDALE AVE BENSenville, IL 60106, USA  
TEL: 630-616-1212 FAX: 630-616-1112

AS CARRIER

\*Applicable only when document used as combined Transport Bill of Lading

Shipper

CMI DISTRIBUTION LLC  
655 ALLENDALE DRIVE WHEELING, IL 60090

Original

B/L No.

QINCH11502001

Nationally of Ocean Vessel

## BILL OF LADING

LAS FREIGHT SYSTEM LTD.  
台速運通股份有限公司

10/F, No. 44 Lane 11, Kuang Fu N. Road, Taipei, Taiwan.  
Tel: 886-2-27690055 Fax: 886-2-27639070  
台北市光復北路11巷44號10樓  
海運承攬運送業許可證字號：海運(基)字第555號

Consignee

JOSHEN PAPER & PACKING  
49 DISTRIBUTION BLVD, 168M BLDG, EDISON NJ 08817  
UNITED STATES

Notify Address

JOSHEN PAPER & PACKING  
49 DISTRIBUTION BLVD, 168M BLDG, EDISON NJ 08817  
UNITED STATES

Shipped on board the vessel named herein in apparent good order and condition (unless otherwise indicated) the goods or packages specified herein and to be discharged at the above mentioned port of discharge or as near thereto as the vessel may safely get and be always afloat.

The weight, measure, marks, numbers, quality, contents and value, being particulars furnished by the Shipper, are not checked by the Carrier on loading. The Shipper, Consignee and the Holder of this Bill of Lading hereby expressly accept and agree to all printed, written or stamped provisions, exceptions and conditions of this Bill of Lading, including those on the back hereof. One of the Bills of Lading duly endorsed must be surrendered in exchange for the goods or delivery order.

In witness whereof, the Carrier or his Agents has signed Bills of Lading all of this tenor and date, one of which being accomplished, the others to stand void.

Shippers are requested to note particularly the exceptions and conditions of this Bill of Lading with reference to the validity of the insurance upon their goods.

|                                                                                                                                 |                                                                                                                   |                                                                   |                            |
|---------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------|----------------------------|
| Pre-carriage by                                                                                                                 | Place of Receipt by Pre-carrier                                                                                   |                                                                   |                            |
| MSC PAUSTINA                                                                                                                    | QINGDAO CHINA                                                                                                     |                                                                   |                            |
| Port of Discharge                                                                                                               | Port of Loading                                                                                                   | Final destination of goods to be transhipped at port of discharge | Freight payable at         |
| MSC PAUSTINA                                                                                                                    | QINGDAO CHINA                                                                                                     | QINGDAO CHINA                                                     | Number of original B(s)/L  |
| NEW YORK, USA                                                                                                                   | EDISON, USA                                                                                                       | Gross weight kgs                                                  | Measurement m <sup>3</sup> |
| Mark & Nos. / Container Nos.                                                                                                    | Number and kind of packages; description of goods                                                                 | 16580.0000                                                        | KGS                        |
| N/M                                                                                                                             | 3407 LDPE BAGS<br>CTNS POWS224<br>CY TO DOOR 1*40GP<br>SAY TOTAL THREE THOUSAND FOUR<br>HUNDRED AND SEVEN CARTONS | 58.0000                                                           | CBM                        |
| TEXU7288541/FEX7124024 40GP                                                                                                     | "ORIGINAL" HBL REQUIRED<br>TKS!                                                                                   | FOB QINGDAO<br>SHIPPED ON BOARD<br>20150202                       |                            |
| TOTAL PACKAGE(S) (IN WORDS)                                                                                                     | 3,407 CTNS                                                                                                        | Place of B(s)/L Issue                                             | Dated                      |
| Freight and charges                                                                                                             |                                                                                                                   | Signed for the Carrier                                            | QINGDAO CHINA 20150202     |
| FOR DELIVERY OF GOODS PLEASE APPLY TO:                                                                                          |                                                                                                                   | LAS FREIGHT SYSTEM LTD.                                           |                            |
| SBA (SERVICE BY AIR) GLOBAL LOGISTICS/ORD<br>871 HURNDALE AVE BENSenville, IL 60106, USA<br>TEL: 630-616-1212 FAX: 630-616-1112 |                                                                                                                   | AS CARRIER                                                        |                            |

\*Applicable only when document used as combined Transport Bill of Lading